

ANSWERS & EXPLANATIONS GENERAL STUDIES (P) TEST –3794 (2023)

Q 1.A

- Before entering his office, the **President** has to make and subscribe to an oath or affirmation. In his oath, the President swears:
 - to faithfully execute the office;
 - to preserve, protect and defend the Constitution and the law;
 - **to devote himself/herself to the service and well-being of the people of India.**
- The oath of office to the **President is administered by the Chief Justice of India.**
- In his oath, the **Vice President** swears, to bear true faith and allegiance to the Constitution of India; and to faithfully discharge the duties of his office.
- The **Prime Minister** swears: to bear true faith and allegiance to the Constitution of India, to uphold the sovereignty and integrity of India, to faithfully and conscientiously discharge the duties of his office, and to do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill will.
- The **Comptroller and Auditor General of India**, before taking over his office, makes and subscribes before the president an oath or affirmation:
 - to bear true faith and allegiance to the Constitution of India; to uphold the sovereignty and integrity of India; to duly and faithfully and to the best of his ability, knowledge and judgement perform the duties of his office without fear or favour, affection or ill-will; and to uphold the Constitution and the laws.
- **Thus among the given dignitaries only the President swears "to devote himself to the service and well-being of the people of India". Hence option (a) is the correct answer.**

Q 2.C

- The governor has certain special responsibilities to discharge according to the directions issued by the President. In this regard, the governor, though has to consult the council of ministers led by the chief minister, acts finally at his discretion.
- The provisions mentioned in the constitution are as follows:
 - Maharashtra–Establishment of separate development boards for Vidarbha and Marathwada. (Article 371)
 - Gujarat–Establishment of separate development boards for Saurashtra and Kutch. (Article 371)
 - **Nagaland–With respect to law and order in the state for so long as the internal disturbance in the Naga Hills-Tuensang Area continues. (Article 371-A).**
 - Assam–With respect to the administration of tribal areas. (Article 371-B).
 - Manipur–Regarding the administration of the hill areas in the state. (Article 371-C).
 - Articles 371-D and 371-E contain special provisions for Andhra Pradesh. In 2014, Article 371-D was extended to the State of Telangana by the Andhra Pradesh Reorganisation Act of 2014.
 - Sikkim–For peace and for ensuring social and economic advancement of the different sections of the population.(Article 371-F).
 - Article 371-G specifies the following special provisions for Mizoram: The Acts of Parliament relating to the following matters would not apply to Mizoram unless the State Legislative Assembly so decides:
 - Religious or social practices of the Mizos
 - Mizo customary law and procedure
 - Administration of civil and criminal justice, involving decisions according to Mizo customary law
 - Ownership and transfer of land and its resources
 - The Mizoram Legislative Assembly is to consist of not less than 40 members

- **Arunachal Pradesh–With respect to law and order in the state. (Article 371-H).**
- Article 371-I provides that the Goa Legislative Assembly is to consist of not less than 30 members.
- Karnataka - Establishment of a separate development board for the Hyderabad-Karnataka region. (Article 371-J).
- Thus, the Constitution has assigned a dual role to the office of a governor in the Indian federal system. He is the constitutional head of the state as well as the representative of the Centre (i.e., President). **Hence options 1 and 4 are correct.**

Q 3.A

- The 73rd Constitutional Amendment Act has added a new Part-IX to the Constitution of India. This part is entitled as 'The Panchayats' and consists of provisions from Articles 243 to 243 O. In addition, the act has also added a new Eleventh Schedule to the Constitution. This schedule contains 29 functional items of the panchayats. It deals with Article 243-G. The Act gives constitutional status to the Panchayati raj institutions. It has brought them under the purview of the justiciable part of the Constitution.
- The act does not apply to the states of Nagaland, Meghalaya and Mizoram, and certain other areas. These areas include, (a) the scheduled areas and the tribal areas in the states ; (b) the hill areas of Manipur for which district councils exist; and (c) the Darjeeling district of West Bengal for which Darjeeling Gorkha Hill Council exists.
 - **The provisions of this Part are applicable to the Union territories.** But, the President may direct that they would apply to a Union territory subject to such exceptions and modifications as he may specify. **Hence statement 2 is not correct.**
- **The act bars the interference by courts in the electoral matters of panchayats.** It declares that the validity of any law relating to the delimitation of constituencies or the allotment of seats to such constituencies cannot be questioned in any court. **Hence statement 1 is correct.**

Q 4.D

- The Constitution of India provides for a federal system of government in the country. The federal character of the Indian Polity is indicated by the following features:
 - **Division of Powers:** The Constitution divided the powers between the Centre and the states in terms of the Union List, State List and Concurrent List in the Seventh Schedule. The Union List consists of 98 subjects (originally 97), the State List of 59 subjects (originally 66) and the Concurrent List of 52 subjects (originally 47).
 - **Independent Judiciary:** The Constitution establishes an independent judiciary headed by the Supreme Court for two purposes: one, to protect the supremacy of the Constitution by exercising the power of judicial review; and two, to settle the disputes between the Centre and the states or between the states.
 - **Written Constitution:** The Constitution is not only a written document but also the lengthiest Constitution in the world. It specifies the structure, organisation, powers and functions of both the Central and state governments and prescribes the limits within which they must operate. Thus, it avoids misunderstandings and disagreements between the two.
 - **Bicameralism:** The Constitution provides for a bicameral legislature consisting of an Upper House (Rajya Sabha) and a Lower House (Lok Sabha). The Rajya Sabha represents the states of the Indian Federation, while the Lok Sabha represents the people of India as a whole. Rajya Sabha (even though a less powerful chamber) is required to maintain the federal equilibrium by protecting the interests of the states against the undue interference of the Centre.
 - **Supremacy of Constitution:** The Constitution is the supreme (or the highest) law of the land. The laws enacted by the Centre and the states must conform to its provisions. Otherwise, they can be declared invalid by the Supreme Court or the high courts through their power of judicial review. Thus, the organs of the government (legislative, executive and judicial) at both levels must operate within the jurisdiction prescribed by the Constitution.
 - **Rigid Constitution:** The division of powers established by the Constitution as well as the supremacy of the Constitution can be maintained only if the method of its amendment is rigid. Hence, the Constitution is rigid to the extent that those provisions which are concerned with the federal structure

(i.e., Centre-state relations and judicial organisation) can be amended only by the joint action of the Central and state governments.

- **Enforceability of Fundamental Rights in the court of law is not a federal characteristic. Hence option (d) is the correct answer.**

Q 5.C

- **Statement 1 is correct: The post of Deputy Chief Minister (CM) is not a constitutional one** and is similar to that of a cabinet minister. It only provides a political indication as to who is next senior-most in the government.
- **Statement 2 is correct: Like any other cabinet minister, deputy CMs are allotted portfolios and they enjoy no extra financial powers or special access to files meant for CM.**

Q 6.D

- Article 74 of the Indian Constitution provides for a council of ministers with the Prime Minister at the head to aid and advise the President in the exercise of his functions. **Article 74 (1)** says that there shall be a **council of Ministers** and the Prime Minister at the head to aid and advise the **President who shall in the exercise of his functions act in accordance with such advice**. This provision was added through the 42nd Constitutional amendment act. **The President is thus constitutionally obliged to act according to the advice of the Council of Ministers. Hence statement 1 is not correct.**
- India does not follow the principle of legal responsibility of ministers, unlike Britain. In Britain, every order of the king or any public action is required to be countersigned by a minister, so that minister is liable in a court of law if that act violates any law.
- **In India, there is no provision in the Constitution for the system of legal responsibility of a minister. It is not required that an order of the President for a public act should be countersigned by a minister.**
- Further, the courts are barred from inquiring into advice tendered by the council of ministers to the President. **Hence statement 2 is not correct.**

Q 7.C

- The President acquires the following extraordinary powers when the President's Rule is imposed in a state:
 - He can take up the functions of the state government and powers vested in the governor or any other executive authority in the state.
 - He can declare that the powers of the state legislature are to be exercised by the Parliament.
 - He can take all other necessary steps including the suspension of the constitutional provisions relating to anybody or authority in the state.
- Therefore, when the President's Rule is imposed in a state, **the President dismisses the state council of ministers headed by the chief minister. Hence option 3 is correct.**
- The state governor, on behalf of the President, carries on the state administration with the help of the chief secretary of the state or the advisors appointed by the President. This is the reason why a proclamation under Article 356 is popularly known as the imposition of 'President's Rule' in a state. Further, **the President either suspends or dissolves the state legislative assembly**. The Parliament passes the state legislative bills and the state budget. **Hence option 2 is not correct.**
- When the state legislature is thus suspended or dissolved, the **Parliament can delegate the power to make laws for the state to the President or to any other authority specified by him in this regard. Hence option 1 is not correct.**

Q 8.B

- **Article 75** of the Indian Constitution states that the Prime Minister shall be appointed by the President and the other Ministers shall be appointed by the President on the advice of the Prime Minister.
- The total number of ministers, including the Prime Minister, in the Council of Ministers, shall not exceed 15% of the total strength of the Lok Sabha. **This provision was added to the constitution by the 91st Amendment Act of 2003.**
- **Hence option (b) is the correct answer.**

Q 9.A

- Under Article 352, the President can declare a national emergency when the security of India or a part of it is threatened by **war or external aggression or armed rebellion**. When a national emergency is declared on the ground of 'war' or 'external aggression', it is known as an 'External Emergency'. On the other hand,

when it is declared on the ground of 'armed rebellion', it is known as an 'Internal Emergency'. **Hence statement 2 is not correct.**

- A proclamation of national emergency may be applicable to the entire country or only a part of it. The 42nd Amendment Act of 1976 enabled the president to limit the operation of a National Emergency to a specified part of India.
- **The President, however, can proclaim a national emergency only after receiving a written recommendation from the cabinet.** This means that the emergency can be declared only on the concurrence of the cabinet and not merely on the advice of the prime minister. **Hence statement 3 is not correct.**
- **National Emergency has been proclaimed three times so far– in 1962, 1971 and 1975.** The first proclamation of National Emergency was issued in October 1962 on account of Chinese aggression in the NEFA. The second proclamation of national emergency was made in December 1971 in the wake of an attack by Pakistan. A third proclamation of National Emergency was made in June 1975. **Hence statement 1 is correct.**

Q 10.D

- The provisions of Part IX of the constitution relating to the Panchayats are not applicable to the Fifth Schedule areas. However, the Parliament may extend these provisions to such areas, subject to such exceptions and modifications as it may specify. Under this provision, the Parliament enacted the "Provisions of the Panchayats (Extension to the Scheduled Areas) Act", 1996, popularly known as the PESA Act or the Extension Act.
- The features (or the provisions) of the PESA Act are as follows:
 - Every Gram Sabha shall be competent to safeguard and preserve the traditions and customs of the people, their cultural identity, community resources, and the customary mode of dispute resolution.
 - **The Gram Sabha or the Panchayats at the appropriate level shall be consulted before making the acquisition of land in the Scheduled Areas for development projects** and before resettling or rehabilitating persons affected by such projects in the Scheduled Areas.
 - **Planning and management of minor water bodies in the Scheduled Areas shall be entrusted to Panchayats at the appropriate level.**
 - **The recommendations of the Gram Sabha or the Panchayats at the appropriate level shall be mandatory for the grant of a prospecting license or mining lease for minor minerals in the Scheduled Areas.**
 - The prior recommendation of the Gram Sabha or the Panchayats at the appropriate level shall be mandatory for the grant of concession for the exploitation of minor minerals by auction.
 - State Legislatures shall ensure that the Panchayats at the appropriate level and the Gram Sabha are endowed specifically with the ownership of minor forest produce.
- **Hence option (d) is the correct answer.**

Q 11.A

- The Central Council of Local Government was set up in 1954. **It was constituted under Article 263 of the Constitution of India by an order of the President of India. Hence option (a) is the correct answer.**
- Till 1958, it dealt with both urban as well as rural local governments, but after 1958 it has been dealing with matters of urban local government only.
- **The Council is an advisory body.** It consists of the minister concerned with urban development (**Minister of Housing and Urban Affairs**) in the Government of India and the ministers for local self-government in states. **The Union minister acts as the Chairman of the Council.**
- The Council performs the following functions with regard to local government:
 - Considering and recommending the policy matters
 - Examining the possibility of cooperation between the Centre and the states
 - Making proposals for legislation
 - Drawing up a common program of action
 - Recommending Central financial assistance
 - Reviewing the work done by the local bodies with the Central financial assistance

Q 12.C

- **The powers and status of the Rajya Sabha are equal to that of the Lok Sabha in the following cases:**
 - Introduction and passage of ordinary bills.
 - **Introduction and passage of Constitutional amendment bills. Hence option 4 is correct.**
 - Introduction and passage of financial bills involving expenditure from the Consolidated Fund of India.
 - **Election and impeachment of the president. Hence option 1 is correct.**

- Election and removal of the Vice-President. However, Rajya Sabha alone can initiate the removal of the vice-president. He is removed by a resolution passed by the Rajya Sabha by an effective majority (which is a type of special majority) and agreed to by the Lok Sabha by a simple majority.
- Making recommendations to the President for the removal of Chief Justice and judges of Supreme Court and high courts, chief election commissioner and comptroller and auditor general.
- **Approval of ordinances issued by the President. Hence option 2 is correct.**
- Approval of proclamation of all three types of emergencies by the President.
- Consideration of the reports of the constitutional bodies like Finance Commission, Union Public Service Commission, comptroller and auditor general, etc.
- Enlargement of the jurisdiction of the Supreme Court and the Union Public Service Commission.
- **The powers and status of the Rajya Sabha are unequal to that of the Lok Sabha:**
 - A Money Bill can be introduced only in the Lok Sabha and not in the Rajya Sabha.
 - Rajya Sabha cannot amend or reject a Money Bill. It should return the bill to the Lok Sabha within 14 days, either with recommendations or without recommendations.
 - The Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha. In both cases, the money bill is deemed to have been passed by the two Houses.
 - A financial bill, not containing solely the matters of Article 110, also can be introduced only in the Lok Sabha and not in the Rajya Sabha. But, with regard to its passage, both the Houses have equal powers.
 - The final power to decide whether a particular bill is a Money Bill or not is vested in the Speaker of the Lok Sabha.
 - The Speaker of Lok Sabha presides over the joint sitting of both the Houses.
 - Rajya Sabha can only discuss the budget but cannot vote on the demands for grants (which is the exclusive privilege of the Lok Sabha).
 - **A resolution for the discontinuance of the national emergency can be passed only by the Lok Sabha and not by the Rajya Sabha. Hence option 3 is not correct.**
 - The Rajya Sabha cannot remove the council of ministers by passing a no-confidence motion. This is because the Council of ministers is collectively responsible only to the Lok Sabha. But, the Rajya Sabha can discuss and criticize the policies and activities of the government.

Q 13.A

- The Constitution (Article 165) has provided for the office of the advocate general for the states. He is the highest law officer in the state. Thus he corresponds to the Attorney General of India.
- The advocate general is appointed by the governor. He must be a person who is qualified to be appointed a judge of a High Court. In other words, **he must be a citizen of India and must have held a judicial office for ten years or been an advocate of a High Court for ten years. Hence statement 1 is correct and 2 is not correct.**
- The term of office of the advocate general is not fixed by the Constitution. Further, the constitution does not contain the procedure and grounds for his removal. He holds office during the pleasure of the governor. This means that he may be removed by the governor at any time. He may also quit his office by submitting his resignation to the governor.
- Conventionally, he resigns when the government (council of ministers) resigns or is replaced, as he is appointed on its advice.
- **The remuneration of the advocate general is not fixed by the Constitution. He receives such remuneration as the governor may determine. Hence statement 3 is not correct.**
- In the performance of his official duties, the advocate general is entitled to appear before any court of law within the state. Further, he has the right to speak and to take part in the proceedings of both the Houses of the state legislature or any committee of the state legislature of which he may be named a member, but without a right to vote. He enjoys all the privileges and immunities that are available to a member of the state legislature.

Q 14.B

- **Legislative procedure in the state legislature**
 - An ordinary bill can originate in either House of the state legislature (in the case of a bicameral legislature). Such a bill can be introduced either by a minister or by any other member.
 - If the council passes the bill without amendments or the assembly accepts the amendments suggested by the council, the bill is deemed to have been passed by both the Houses, and the same is sent to the governor for his assent.

- **On the other hand, if the assembly rejects the amendments suggested by the council or the council rejects the bill altogether or the council does not take any action for three months, then the assembly may pass the bill again and transmit the same to the council.** If the council rejects the bill again or passes the bill with amendments not acceptable to the assembly or does not pass the bill within one month, then the bill is deemed to have been passed by both the Houses in the form in which it was passed by the assembly for the second time.
- Therefore, the ultimate power of passing an ordinary bill is vested in the assembly. **At the most, the council can detain or delay the bill for a period of four months—three months in the first instance and one month in the second instance. Hence statement 1 is not correct.**
- **The Constitution does not provide for the mechanism of joint sitting of both the Houses to resolve the disagreement between the two Houses over a bill.** On the other hand, there is a provision for a joint sitting of the Lok Sabha and the Rajya Sabha to resolve a disagreement between the two over an ordinary bill. **Hence statement 2 is correct.**
- **When an ordinary bill, which has originated in the council and was sent to the assembly, is rejected by the assembly, the bill ends and becomes dead. Hence statement 3 is correct.**

Q 15.C

- **In addition to the budget that contains the ordinary estimates of income and expenditure for one financial year, various other grants are made by the Parliament under extraordinary or special circumstances:**
- **Supplementary Grant:** It is granted when the amount authorized by the Parliament through the appropriation act for a particular service for the current financial year is found to be insufficient for that year. **Additional Grant** It is granted when a need has arisen during the current financial year for additional expenditure upon some new service not contemplated in the budget for that year.
- **Excess Grant:** It is granted when money has been spent on any service during a financial year in excess of the amount granted for that service in the budget for that year. It is voted by the Lok Sabha after the financial year. Before the demands for excess grants are submitted to the Lok Sabha for voting, they must be approved by the Public Accounts Committee of Parliament.
- **Vote of Credit:** It is granted for meeting an unexpected demand upon the resources of India when on account of the magnitude or the indefinite character of the service, the demand cannot be stated with the details ordinarily given in a budget. Hence, it is like a blank cheque given to the Executive by the Lok Sabha.
- **Exceptional Grant:** It is granted for a special purpose and forms no part of the current service of any financial year.
- **Token Grant:** It is granted when funds to meet the proposed expenditure on a new service can be made available by re-appropriation. Demand for the grant of a token sum (of Re 1) is submitted to the vote of the Lok Sabha and if assented, funds are made available. Reappropriation involves the transfer of funds from one head to another. It does not involve any additional expenditure.
- Supplementary, additional, excess, and exceptional grants and vote of credit are regulated by the same procedure which is applicable in the case of a regular budget.
- **Hence option (c) is the correct answer.**

Q 16.D

- Joint sitting is an extraordinary mechanism provided by the Constitution to resolve a deadlock between the two Houses over the passage of a bill. **A deadlock is deemed to have taken place under any one of the following three situations after a bill has been passed by one House and transmitted to the other House:**
 - If the bill is rejected by the other House;
 - If the Houses have finally disagreed as to the amendments to be made in the bill; or
 - If more than six months have elapsed from the date of the receipt of the bill by the other House without the bill being passed by it.
- In the above three situations, the president can summon both the Houses to meet in a joint sitting for the purpose of deliberating and voting on the bill.
- **The provision of joint sitting is applicable to ordinary bills or financial bills only and not to money bills or Constitutional amendment bills.** In the case of a money bill, the Lok Sabha has overriding powers, while a Constitutional amendment bill must be passed by each House separately.
- **The quorum to constitute a joint sitting is one-tenth of the total number of members of the two Houses. The joint sitting is governed by the Rules of Procedure of Lok Sabha and not of Rajya Sabha. Hence statement 1 is correct.**

- If the bill in dispute is passed by a majority of the total number of members of both the Houses present and voting in the joint sitting, the bill is deemed to have been passed by both the Houses. Hence statement 2 is correct.
- Since 1950, the provision regarding the joint sitting of the two Houses has been invoked only thrice. The bills that have been passed at joint sittings are:
 - Dowry Prohibition Bill, 1960. Hence statement 3 is correct.
 - Banking Service Commission (Repeal) Bill, 1977.
 - Prevention of Terrorism Bill, 2002.

Q 17.D

- The list of the charged expenditure upon a consolidated fund of India is as follows:
 - Emoluments and allowances of the President and other expenditures relating to his office. Hence option 1 is correct.
 - Salaries and allowances of the Chairman and the Deputy Chairman of the Rajya Sabha and the Speaker and the Deputy Speaker of the Lok Sabha.
 - Salaries, allowances, and pensions of the judges of the Supreme Court.
 - Pensions of the judges of high courts, however, salaries, and allowances of the judges of the High Court are charged on the consolidated fund of the state. Hence option 2 is not correct.
 - Salary, allowances, and pension of the Comptroller and Auditor General of India.
 - Salaries, allowances, and pension of the chairman and members of the Union Public Service Commission.
 - Administrative expenses of the Supreme Court, the office of the Comptroller and Auditor General of India, and the Union Public Service Commission including the salaries, allowances, and pensions of the persons serving in these offices. Hence option 3 is correct.
 - The debt charges for which the Government of India is liable, include interest, sinking fund charges and redemption charges, and other expenditures relating to the raising of loans and the service and redemption of debt.
 - Any sum required to satisfy any judgment, decree, or award of any court or arbitral tribunal.
 - Any other expenditure declared by the Parliament to be so charged.

Q 18.A

- Twelfth Schedule: It contains the following 18 functional items placed within the purview of municipalities:
 - Urban planning including town planning.
 - Regulation of land use and construction of buildings;
 - Planning for economic and social development;
 - Roads and bridges; Hence option 2 is correct.
 - Water supply for domestic, industrial, and commercial purposes;
 - Public health, sanitation, conservancy, and solid waste management.
 - Fire services; Hence option 1 is correct.
 - Urban forestry, protection of the environment, and promotion of ecological aspects; Hence option 3 is correct.
 - Safeguarding the interests of weaker sections of society, including the handicapped and mentally retarded;
 - Slum improvement and up-gradation;
 - Urban poverty alleviation;
 - Provision of urban amenities and facilities such as parks, gardens, and playgrounds;
 - Promotion of cultural, educational, and aesthetic aspects;
 - Burials and burial grounds, cremations and cremation grounds and electric crematoriums;
 - Cattle ponds, prevention of cruelty to animals;
 - Vital statistics including registration of births and deaths;
 - Public amenities including street lighting, parking lots, bus stops and public conveniences; and
 - Regulation of slaughterhouses and tanneries.
- Railways come under the Central Government and are not maintained by the local governments. Hence option 4 is not correct.
- Hence option (a) is the correct answer.

Q 19.B

- Recently, The North Atlantic Treaty Organisation (NATO) and Russia discussed the ongoing situation in Ukraine and its implications for security in Europe.
- NATO, or the North Atlantic Treaty Organisation, was set up in 1949 by the **US, Canada, and several western European nations** to ensure their collective security against the Soviet Union. It was the US's first peacetime military alliance outside the western hemisphere.
- At present, NATO has 30 members. In 1949, there were 12 founding members of the Alliance: Belgium, Canada, Denmark, **France**, Iceland, Italy, Luxembourg, the Netherlands, Norway, Portugal, the United Kingdom and the United States. The other member countries are: **Greece and Turkey** (1952), Germany (1955), Spain (1982), the Czech Republic, Hungary and Poland (1999), Bulgaria, Estonia, Latvia, Lithuania, Romania, Slovakia and Slovenia (2004), Albania and Croatia (2009), Montenegro (2017) and North Macedonia (2020).
- **Austria is not a member of NATO.**
- **Hence, option (b) is the correct answer.**

Q 20.B

- **Parliamentary approval of the National Emergency**
 - **The proclamation of Emergency must be approved by both the Houses of Parliament within one month from the date of its issue.** Originally, the period allowed for approval by the Parliament was two months but was reduced by the 44th Amendment Act of 1978.
 - If approved by both the Houses of Parliament, **the emergency continues for six months and can be extended to an indefinite period with the approval of the Parliament every six months.** This provision for periodical parliamentary approval was also added by the 44th Amendment Act of 1978. **Hence option (b) is the correct answer.**
- **Every resolution approving the proclamation of emergency or its continuance must be passed by either House of Parliament by a special majority, that is,**
 - a majority of the total membership of that house, and
 - a majority of not less than two-thirds of the members of that house present and voting
- A proclamation of emergency may be revoked by the President at any time by a subsequent proclamation. **Such a proclamation does not require parliamentary approval.**

Q 21.B

- **Statement 1 is not correct:** In 1971, the Supreme Court ruled that a council of ministers must always exist to advise the governor, even after the dissolution of the state legislative assembly or the resignation of a council of ministers. **Hence, the existing ministry may continue in office until its successor assumes charge.**
- **Statement 2 is correct: The nature of advice tendered by ministers to the governor cannot be enquired by any court.** This provision emphasizes the intimate and confidential relationship between the governor and the ministers. If any question arises whether a matter falls within the Governor's discretion or not, the decision of the Governor shall be final, and the validity of anything done by the Governor shall not be called in question on the ground that he ought or ought not to have acted in his discretion.

Q 22.D

- A private member's Bill is different from a government Bill and is piloted by an MP who is not a minister. Individual MPs may introduce private member's Bill to draw the government's attention to what they might see as issues requiring legislative intervention.
- A public bill is drafted by the concerned department in consultation with the law department and private bill drafting is the responsibility of the member concerned. **Hence statement 2 is correct.**
- **What is a private member's Bill?**
 - An MP who is not a minister is a private member and while both private members and ministers take part in the law-making process, Bills introduced by private members are referred to as private member's Bills, and those introduced by ministers are called government Bills.
 - Before the Bill can be listed for introduction, the Member must give at least a month's notice, for the House Secretariat to examine it for compliance with constitutional provisions and rules on legislation. While a government Bill can be introduced and discussed on any day, a private member's bill can only be introduced and discussed on Fridays. Public bill introduction in the House requires seven days' notice. **Hence statement 1 is correct.**

Q 23.C

- Under Article 76 of the Indian Constitution, the **Attorney General of India** holds office during the pleasure of the president. This means that he **may be removed by the President at any time**.
- As per Article 317 of the Indian Constitution, the **President can remove the chairman or any other member of the Union Public Service Commission** from the office under the following circumstances: (a) If he is adjudged insolvent (that is, has gone bankrupt); (b) If he engages, during his term of office, in any paid employment outside the duties of his office; or (c) If he is, in the opinion of the president, unfit to continue in office by reason of infirmity of mind or body.
- **Under Article 157 of the Indian Constitution, a Governor of a state** holds office for a term of five years from the date on which he enters his office. However, this **term of five years is subject to the pleasure of the President**. The Constitution does not lay down any grounds upon which a governor may be removed by the President.
- Article 94 of the Indian Constitution says that the **Speaker of Lok Sabha** can be removed by a resolution passed by a majority of all the then members of the Lok Sabha. Such a resolution can be moved only after giving 14 days' advance notice. Thus the **speaker is not removed by the President**.
- **Hence option (c) is the correct answer.**

Q 24.D

- The distribution of legislative powers between the Centre and the states is rigid. Consequently, **the Centre cannot delegate its legislative powers to the states and a single state cannot request the Parliament to make a law on a state subject. Hence statement 1 is not correct.**
- The distribution of executive power, in general, follows the distribution of legislative powers. But, such a rigid division in the executive sphere may lead to occasional conflicts between the two. Hence, the Constitution provides for intergovernmental delegation of executive functions in order to mitigate rigidity and avoid a situation of deadlock.
- Accordingly, the President may, with the consent of the state government, entrust to that government any of the executive functions of the Centre. Conversely, the governor of a State may, with the consent of the Central government, entrust to that government any of the executive functions of the state. This mutual delegation of administrative functions may be conditional or unconditional. **Hence statement 3 is correct.**
- **The Constitution also makes a provision for the entrustment of the executive functions of the Centre to a state without the consent of that state. But, in this case, the delegation is by the Parliament and not by the president. Hence statement 2 is not correct.**

Q 25.D

- **A panel of Chairpersons of Lok Sabha:**
 - Under the Rules of Lok Sabha, the Speaker **nominates** from amongst the members a panel of not more than ten chairpersons. They are not elected. **Hence statement 1 is not correct.**
 - **Any of them can preside over the House in the absence of the Speaker or the Deputy Speaker.** He has the same powers as the Speaker when so presiding. He holds office until a new panel of chairpersons is nominated. When a member of the panel of chairpersons is also not present, any other person as determined by House acts as the Speaker.
 - It must be emphasized here that **a member of the panel of chairpersons cannot preside over the House when the office of the Speaker or the Deputy Speaker is vacant.** During such time, the Speaker's duties are to be performed by such member of the House as the President may appoint for the purpose. The elections are held, as soon as possible, to fill the vacant posts. **Hence statement 2 is not correct.**

Q 26.D

- Article 72 of the Constitution empowers the **President to grant pardons** to persons who have been tried and convicted of any offense in all cases where the punishment is for an offense against a Union Law, by a court-martial (military court) or Sentence is a sentence of death.
- The **Governor also enjoys pardoning powers** (Article 161) in case of state laws. However, in the case of the **death sentence, only the President has the power to grant pardon** even if the punishment is given as per the state law.
- But in such **cases of a death sentence** given by state laws, **the governor has powers** to suspend, remit or commute a death sentence. Thus **besides the President, the Governor has the authority to remit the death sentence in case of state laws. Hence statement 1 is not correct.**
- The Supreme Court has examined the pardoning power of the President in different cases and observed that:
 - The **Presidential Pardon** under Article 72 is **subject to judicial review** on the considerations mentioned in Maru Ram and Kehar Singh cases.

- These include considerations that are arbitrary or ‘wholly irrelevant, irrational, discriminatory or mala fide.’
- It has also been observed by the Court that the **petitioner for mercy has no right to an oral hearing by the President. Hence statements 2 and 3 are correct.**

Q 27.C

- The **69th Constitutional Amendment Act of 1991**, redesignated the Union Territory of Delhi as the **National Capital Territory of Delhi** and **created a legislative assembly** and a council of ministers for Delhi. It also designated the administrator of Delhi as the Lieutenant Governor. According to the provisions of the act, **the chief minister is appointed by the President.** The other ministers are appointed by the president on the advice of the chief minister. The **ministers hold office during the pleasure of the president. Hence, statement 1 is correct.**
- **It added two new Articles 239AA and 239AB under which the Union Territory of Delhi has been given a special status.**
 - Article 239AA provides that the Union Territory of Delhi be called the national capital Territory of Delhi and its administrator shall be known as Lt.Governor. It also provides for a Council of Ministers for Delhi Consisting of not more than 10% of the total number of members in the assembly.
 - Article 239AB provides that the President may by order suspend the operation of any provision of Article 239AA or of all or any of the provisions of any law made in pursuance of that article. This provision resembles Article 356 (President’s Rule).
- The **Government of National Capital Territory (GNCT) of Delhi (Amendment) Act, 2021**, amended Sections 21, 24, 33, and 44 of the 1991 Act. According to this act, **the expression “Government”** referred to in any law to be made by the Legislative Assembly shall **mean the Lieutenant Governor (LG).** The Act specifies that all executive action by the government, whether taken on the advice of the Ministers or otherwise, must be taken in the name of the LG. It also adds that on certain matters, as specified by the LG, his/her opinion must be obtained before taking any executive action on the decisions of the Minister/ Council of Ministers. **Hence, statement 2 is correct.**
- It gives discretionary powers to the L-G even in matters where the legislative assembly of Delhi is empowered to make laws.
- It bars the Assembly or its committees from making rules to take up matters concerning day-to-day administration, or to conduct inquiries in relation to administrative decisions.

Q 28.B

- **The Constitution lays down the following qualifications for a person to be chosen as a member of the Parliament:**
 - He must be a citizen of India.
 - He must make and subscribe to an oath or affirmation before the person authorized by the election commission for this purpose.
 - He must be not less than 30 years of age in the case of the Rajya Sabha and not less than 25 years of age in the case of the Lok Sabha.
 - He must possess other qualifications prescribed by Parliament.
- **The Parliament has laid down the following additional qualifications in the Representation of People Act (1951).**
 - He must be registered as an elector for a parliamentary constituency. This is the same in the case of both, the Rajya Sabha and the Lok Sabha.
 - **The requirement that a candidate contesting an election to the Rajya Sabha from a particular state should be an elector in that particular state was dispensed in 2003. Hence statement 1 is not correct.**
 - He must be a member of a scheduled caste or scheduled tribe in any state or union territory if he wants to contest a seat in Lok Sabha reserved for them. However, a member of scheduled castes or scheduled tribes can also contest a seat not reserved for them. **Hence statement 2 is correct.**

Q 29.B

- The Second Commission on Centre-State Relations was set up by the Government of India in April 2007 under the Chairmanship of Madan Mohan Pundhi, former Chief Justice of India. It was required to look into the issues of Centre-State relations keeping in view the sea changes that have taken place in the polity

and economy of India since the Sarkaria Commission had last looked at the issue of Centre-State relations over two decades ago.

- The commission recommended that the convention of Governors acting as Chancellors of Universities and holding other statutory positions should be done away with. His role should be confined to the Constitutional provisions only.
- **Recently, the West Bengal government forwarded a proposal to make the Chief Minister the chancellor of state universities instead of governors.**
- **Hence option (b) is the correct answer.**
- **The other important recommendations of the Punchhi Commission are mentioned below:**
 - **To facilitate effective implementation of the laws on List III subjects, it is necessary that some broad agreement is reached between the Union and states** before introducing legislation in Parliament on matters in the Concurrent List.
 - The Union should be extremely restrained in asserting Parliamentary supremacy in matters assigned to the states. Greater flexibility to states in relation to subjects in the State List and “transferred items” in the Concurrent List is the key to better center-state relations.
 - The period of six months prescribed in Article 201 for State Legislature to act when the bill is returned by the President can be made applicable for the President also to decide on assenting or withholding assent to a state bill reserved for the consideration of the President.
 - While selecting Governors, the Central Government should adopt the following strict guidelines as recommended in the Sarkaria Commission report and follow its mandate in letter and spirit:
 - He should be eminent in some walk of life
 - He should be a person from outside the state
 - He should be a detached figure and not too intimately connected with the local politics of the state
 - He should be a person who has not taken too great a part politics generally and particularly in the recent past
 - Governors should be given a fixed tenure of five years and their removal should not be at the sweet will of the Government at the Centre.
 - New all-India services in sectors like health, education, engineering, and judiciary should be created.
 - A balance of power between states inter se is desirable and this is possible by equality of representation in the Rajya Sabha. This requires amendment of the relevant provisions to give equality of seats to states in the Rajya Sabha, irrespective of their population size.
 - The scope of devolution of powers to local bodies to act as institutions of self-government should be constitutionally defined through appropriate amendments.
 - Also recommended that the states having legislative councils should have representation from local governments.

Q 30.B

- Asymmetric federalism involves providing greater autonomy to some states when compared to others. It permits particular states to have greater executive, legislative, and at times, judicial powers than other states.
- The Indian constitution also adopts this feature in a series of ways to account for the diversity and the historic situations during the integration of the Indian state. Some of the major provisions in this regard include -:
 - **Schedule IV:** Schedule IV of the Indian Constitution deals with the representation of the states in the Rajya Sabha. In a symmetric federation, there is an equal representation of all the states in the second chamber. **However, in India, Schedule IV does not provide for equal representation of states in the Rajya Sabha. For e.g., Uttar Pradesh has been allotted 31 seats in Rajya Sabha, where Uttarakhand has been allotted only 3 seats.**
 - **Schedule VI:** One of the major manifestations of asymmetric federalism of the Indian Constitution is found in schedule VI of the Indian constitution. It contains provisions for the **creation of autonomous districts and autonomous regions for the administration of tribal areas in Assam, Meghalaya, Tripura and Mizoram.**
 - Other manifestations of the asymmetric federalism of the Indian constitution include:
 - Article 371 provides the Governor of Maharashtra with a special responsibility to establish separate development boards for Vidarbha, Marathwada, and the rest of the State, while the Governor of Gujarat has a similar responsibility towards Saurashtra, Kutch and the rest of Gujarat. The responsibilities cover the equitable allocation of funds for development expenditure and providing facilities for technical education and vocational training.

- Article 371A confers special status on the state of Nagaland.
- Article 371D is a detailed provision under which the President can pass an order to provide equitable opportunities and facilities to people belonging to different parts of Andhra Pradesh in public employment and education.
- Article 371F incorporated special provisions after the addition of Sikkim to India.
- Article 371G contains special provisions to preserve the religious and social practices of Mizos in Mizoram and their customary law and procedure and administration of criminal and civil justice, besides ownership of land.
- Article 371H vests a special responsibility on the Governor of Arunachal Pradesh with respect to law and order. It makes clear that the Governor shall discharge this function after consulting the Council of Ministers, but exercise his individual judgment as to the action taken.
- Appointment of State Governor and Imposition of President's Rule under Article 356 does not grant differential rights to any federal units. Thus, these does not reveal the asymmetric federal character of the Indian State.
- **Hence option (b) is the correct answer.**

Q 31.A

- **Estimates Committee**
 - The origin of this committee can be traced to the standing finance committee set up in 1921.
 - **The first Estimates Committee in the post-independence era was constituted in 1950 on the recommendation of John Mathai, the then finance minister.** Originally, it had 25 members but in 1956 its membership was raised to 30. All the thirty members are from Lok Sabha only. The Rajya Sabha has no representation in this committee.
 - A minister cannot be elected as a member of the committee. **The chairman of the committee is appointed by the Speaker from amongst its members and he is invariably from the ruling party. Hence statement 3 is correct.**
- **The functions of the committee are:**
 - To report what economies, improvements in organization, efficiency, and administrative reform consistent with the policy underlying the estimates, can be affected.
 - **To suggest alternative policies in order to bring about efficiency and economy in administration. Hence statement 1 is not correct.**
 - To examine whether the money is well laid out within the limits of the policy implied in the estimates.
 - To suggest the form in which the estimates are to be presented to Parliament
- **The effectiveness of the role of the committee is limited by the following:**
 - It examines the budget estimates only after they have been voted by the Parliament, and not before that.
 - It cannot question the policy laid down by the Parliament.
 - Its recommendations are advisory and not binding on the ministries.
 - **It lacks the expert assistance of the CAG which is available to the Public Accounts Committee. Hence statement 2 is correct.**

Q 32.B

- **Chairman of Council:**
 - **The Chairman is elected by the council itself from amongst its members. Hence statement 2 is correct.**
 - The Chairman vacates his office in any of the following three cases:
 - if he ceases to be a member of the council;
 - if he resigns by writing to the deputy chairman; and
 - if he is removed by a resolution passed by a majority of all the then members of the council. Such a resolution can be moved only after giving 14 days' advance notice.
 - As a presiding officer, the powers and functions of the Chairman in the council are similar to those of the Speaker in the assembly. However, the **Speaker has one special power which is not enjoyed by the Chairman.** The Speaker decides whether a bill is a Money Bill or not and his decision on this question is final. **Hence statement 1 is not correct.**
 - As in the case of the Speaker, the salaries and allowances of the Chairman are also fixed by the state legislature. They are charged to the Consolidated Fund of the State and thus are not subject to the annual vote of the state legislature.
 - **Like the Chairman, the Deputy Chairman is also elected by the council itself from amongst its members.** However, the Chairman nominates from amongst the members a panel of vice-chairmen.

Any one of them can preside over the council in the absence of the Chairman or the Deputy Chairman. He has the same powers as the chairman when so presiding. He holds office until a new panel of vice-chairmen is nominated. **Hence statement 3 is not correct.**

Q 33.B

- **Aadhaar number is a 12-digit random number** issued by the Unique Identification Authority of India (UIDAI) to the residents of India after satisfying the verification process laid down by the Authority. Any individual, irrespective of age and gender, who is a resident of India, may voluntarily enroll to obtain an Aadhaar number.
- Recently, a warning by the UIDAI, later withdrawn, urged the public not to share photocopies of their Aadhaar with anyone as it may be misused. In this context, the following are steps to keep one's Aadhaar data safe:
 - **Two-factor authentication:** It is imperative that one's Aadhaar is linked to your primary mobile number and email ID. This is where UIDAI will send the one-time password (OTP) if someone tries to access your Aadhaar account or use it for any verification.
 - **Masked Aadhaar copy:** One can download a 'Masked Aadhaar' copy from the official UIDAI website and share a photocopy instead of a full Aadhaar ID.
 - **Locking biometrics:** Users can lock this data temporarily or permanently, depending on preference, and it can be unlocked in both cases using UIDAI website.
 - **Use VID: The Virtual Identity, or VID,** is a system of "Limited KYC" (Know Your Customer). This hides the Aadhaar number from the authenticating agency, while still confirming the identity of the user.
 - **VID is a temporary, revocable 16-digit random number** mapped with the Aadhaar number. VID can be used in lieu of an Aadhaar number **whenever authentication or e-KYC services are performed.** Authentication may be performed using VID in a manner similar to using an Aadhaar number. It is not possible to derive an Aadhaar number from VID. **Hence statement 1 is not correct and statement 2 is correct.**

Q 34.A

- Every member of either House of state legislature, before taking his seat in the House, has to make and subscribe an oath or affirmation before the governor or some person appointed by him for this purpose.
- **In this oath, a member of the state legislature swears:**
 - to bear true faith and allegiance to the Constitution of India;
 - to uphold the sovereignty and integrity of India; and
 - to faithfully discharge the duty of his office.
- Unless a member takes the oath, he **cannot vote and participate** in the proceedings of the House and does not become eligible to the privileges and immunities of the state legislature. **Hence statement 1 is not correct.**
- **A person is liable to a penalty of 500 for each day he sits or votes as a member in a House:**
 - before taking and subscribing to the prescribed oath or affirmation; or
 - when he knows that he is not qualified or that he is disqualified for its membership; or
 - when he knows that he is prohibited from sitting or voting in the House by virtue of any law made by Parliament or the state legislature.
- **Members of a state legislature are entitled to receive such salaries and allowances as may from time to time be determined by the state legislature. Hence statement 2 is not correct.**
- The Constitution provided for the reservation of seats for scheduled castes and scheduled tribes in the assembly of each state on the basis of population ratios. **Hence statement 3 is correct.**
 - **Originally, this reservation was to operate for ten years (i.e., up to 1960). But this duration has been extended continuously since then by 10 years each time. Now, under the 95th Amendment Act of 2009, this reservation is to last until 2020.**

Q 35.B

- **Composition of Legislative Council:**
 - Strength Unlike the members of the legislative assembly, the members of the legislative council are indirectly elected.
 - The maximum strength of the council is fixed at one-third of the total strength of the assembly and the minimum strength is fixed at 406. **It means that the size of the council depends on the size of the assembly of the concerned state.** This is done to ensure the predominance of the directly elected House

(assembly) in the legislative affairs of the state. Though the Constitution has fixed the maximum and the minimum limits, the actual strength of a Council is fixed by Parliament. **Hence option (a) is correct.**

- **Manner of Election- Of the total number of members of a legislative council:**

- 1/3 are elected by the members of local bodies in the state like municipalities, district boards, etc.,
- 1/12 are elected by graduates of three years standing and residing within the state,
- 1/12 are elected by teachers of three years standing in the state, not lower in standard than secondary school,
- **1/3 are elected by the members of the legislative assembly of the state from amongst persons who are not members of the assembly. Hence option (d) is correct.**
- the remainder is nominated by the governor from amongst persons who have special knowledge or practical experience in literature, science, art, cooperative movement, and social service.
- **Thus, 5/6 of the total number of members of a legislative council are indirectly elected and 1/6 are nominated by the governor. Hence option (c) is correct.**
- The members are elected in accordance with the system of proportional representation by means of a single transferable vote. The bonafides or propriety of the governor's nomination, in any case, cannot be challenged in the courts.
- This scheme of the composition of a legislative council as laid down in the Constitution is tentative and not final. The Parliament is authorized to modify or replace the same. However, it has not enacted any such law so far.

- **Duration of Council:**

- Like the Rajya Sabha, the legislative council is a continuing chamber, that is, it is a permanent body and is not subject to dissolution. But, one-third of its members retire at the expiration of every second year. So, a member continues as such for six years.
- **The vacant seats are filled up by fresh elections and nominations (by the governor) at the beginning of every third year. The retiring members are also eligible for re-election and re-nomination any number of times. Hence option (b) is not correct.**

Q 36.C

- To be eligible for election as Vice-President, a person should fulfill the following qualifications: He should be a citizen of India, **he should have completed 35 years of age**, he should be qualified for election as a member of the Rajya Sabha, he should not hold any office of profit under the Union government or any state government or any local authority or any other public authority. **Thus the Constitution has prescribed minimum age for the qualification to the office of Vice President. Hence statement 1 is not correct.**
- The Constitution **has not specified specific grounds for the removal of the Vice President unlike the office of the President.** The Constitution provides that a Vice-President can be removed from office before the completion of his term. A formal impeachment is not required for his removal. He can be removed by a resolution passed by a majority of all the then members of the Rajya Sabha and agreed to by the Lok Sabha. **Hence statement 2 is not correct.**
- **There is no bar to a member of the Union or State Legislature being an elected President or Vice President**, but the two offices cannot be combined in one person. In case a member of the Legislature is elected President or Vice President in that House of the Legislature to which he belongs on the date on which he enters upon his office as or Vice-President.

Q 37.C

- **Double Membership:** A person can not be a member of both Houses of Parliament at the same time. Thus, **the Representation of People Act (1951)** provides for the following:
 - If a person is elected to both the Houses of Parliament, he must intimate within 10 days in which House he desires to serve. In default of such intimation, his seat in the Rajya Sabha becomes vacant.
 - If a sitting member of one House is also elected to the other House, his seat in the first House becomes vacant.
 - **If a person is elected to two seats in a House, he should exercise his option for one. Otherwise, both seats become vacant. Hence option (c) is the correct answer.**
 - Similarly, a person cannot be a member of both the Parliament and the state legislature at the same time. If a person is so elected, his seat in Parliament becomes vacant if he does not resign his seat in the state legislature within 14 days.

Q 38.B

- **Every ordinary bill has to pass through the following stages in Parliament before it finds a place in the Statute Book:**
- **First Reading:**
 - An ordinary bill can be introduced in either House of Parliament. Such a bill can be introduced either by a minister or by any other member. The member who wants to introduce the bill has to ask for a leave of the House.
 - When the House grants leave to introduce the bill, the mover of the bill introduces it by reading its title and objectives.
 - **No discussion on the bill takes place at this stage.** Later, the bill is published in the Gazette of India. If a bill is published in the Gazette before its introduction, leave of the House to introduce the bill is not necessary.
 - The introduction of the bill and its publication in the Gazette constitute the first reading of the bill. **Hence statement 1 is not correct.**
- **Second Reading:**
 - During this stage, the bill receives not only general but also detailed scrutiny and assumes its final shape. Hence, it forms the most important stage in the enactment of a bill.
 - In fact, this stage involves three more sub-stages, namely, the stage of general discussion, the committee stage, and the consideration stage. **Hence statement 2 is correct.**
- **Third Reading:**
 - At this stage, the debate is confined to the acceptance or rejection of the bill as a whole and no amendments are allowed, as the general principles underlying the bill have already been scrutinized during the stage of second reading.
 - **If the majority of the members present and voting accept the bill, the bill is regarded as passed by the House. Thereafter, the bill is authenticated by the presiding officer of the House and transmitted to the second House for consideration and approval.**
 - A bill is deemed to have been passed by the Parliament only when both the Houses have agreed to it, either with or without amendments. **Hence statement 3 is not correct.**

Q 39.A

- **Recent Context: A cargo ship carrying chemicals and tonnes of tiny plastic pellets called nurdles, caught fire off the coast of Sri Lanka - leaving in its wake an environmental disaster that the island will likely have to live with for decades.**
- **Nurdles, the colloquial term for “pre-production plastic pellets”, are the little-known building block for all our plastic products. The tiny beads can be made of polyethylene, polypropylene, polystyrene, polyvinyl chloride and other plastics. They are melted down and cast into moulds to make various plastic products.**
 - Released into the environment from plastic plants or when shipped around the world as raw material to factories, they will sink or float, depending on the density of the pellets and if they are in freshwater or saltwater.
- **Nurdles are by definition microplastic because they are less than 5mm in size. It takes roughly 600 nurdles to create one small plastic disposable water bottle. Nurdles are increasingly finding their way into the natural environment, particularly the ocean, threatening a variety of marine wildlife. Hence option (a) is the correct answer.**
- Nurdles are often shipped across the ocean in large containers. Pellets can leak out of damaged packaging and containers on board ships, as well as being spilled in large quantities in disaster situations. In 2021, the X-Press pearl shipwreck saw 1680 tonnes of nurdles spilled into the ocean and onto the shores of Sri Lanka, the largest recorded nurdle spill at sea.



Q 40.B

- **Recent Context: A 15-foot endangered whale shark was spotted on the shores of Andhra Pradesh's Srikakulam district.**
- **The Whale Shark is the biggest fish in the world. It is a large fish that can grow up to 60 feet long, though most specimens reach about 40 feet in length and weigh about 15 tons.**

- Whale sharks are dark grey on top and light underneath, with a series of light spots or stripes covering the dark parts of their bodies. This helps to camouflage them as they swim.
- **Preferring warm waters, whale sharks populate all tropical seas. They are known to migrate every spring to the continental shelf of the central west coast of Australia.**
- **The whale shark, like the world's second-largest fish, the basking shark, is a filter feeder. In order to eat, it juts out its formidably sized jaws and passively filters everything in its path.** The mechanism is theorized to be a technique called “cross-flow filtration,” similar to some bony fish and baleen whales.
- Although the whale shark is usually solitary, it is sometimes found in schools of up to hundreds of individuals. These animals are found mainly in the open sea, but they sometimes come near the shore.
- Although massive, whale sharks are docile fish and sometimes allow swimmers to hitch a ride. They are currently listed as an **endangered** species on the IUCN Red List of Threatened Species; however, they continue to be hunted in parts of Asia, such as the Philippines. **Hence option (b) is the correct answer.**
- Whale sharks do not pose a danger to humans. Many individual whale sharks have been approached, examined, and even ridden by divers without showing any sign of aggression. They may, out of curiosity, approach and examine people in the water.

Q 41.C

- The Constitution provides for a three-fold distribution of **legislative subjects (Article 246)** between the Centre and the states, viz., List-I (the Union List), List-II (the State List) and List-III (the Concurrent List) in the Seventh Schedule.
- The Parliament has exclusive powers to make laws with respect to any of the matters enumerated in the Union List. This list has at present 98 subjects (originally 97 subjects). The state legislature has “in normal circumstances” exclusive powers to make laws with respect to any of the matters enumerated in the State List. This has at present 59 subjects (originally 66 subjects).
- **Both, the Parliament and state legislature can make laws with respect to any of the matters enumerated in the Concurrent List. This list has at present 52 subjects (originally 47 subjects). Hence statement 1 is not correct and statement 2 is correct.**
- The Constitution expressly secures the predominance of the Union List over the State List and the Concurrent List and that of the Concurrent List over the State List. In case of a conflict between the Central law and the state law on a subject enumerated in the Concurrent List, the Central law prevails over the state law. **But, there is an exception. If the state law has been reserved for the consideration of the president and has received his assent, then the state law prevails in that state.** But, it would still be competent for the Parliament to override such a law by subsequently making a law on the same matter. **Hence statement 3 is correct.**

Q 42.A

- The **Union Territories** are under the **direct administrative control** of the Central government. They are administered by the President through the administrators.
- However, the Constitution of India empowers the Parliament to provide for popular political institutions i.e. and legislative assemblies in the Union Territories.
- Accordingly, the **Union Territories of Puducherry (in 1963), National Capital Territory of Delhi (in 1992) and Jammu and Kashmir (in 2019)** are provided with a **legislative assembly** and a council of ministers **headed by a chief minister**. However, the establishment of such institutions in the union territories does not diminish the supreme control of the President over them.
- The remaining **six union territories (including Ladakh) do not have such popular political institutions.**
- The state of Jammu and Kashmir was divided into two Union Territories i.e. the Union territories of Jammu and Kashmir and Ladakh in 2019 by the Jammu and Kashmir Reorganisation Act, 2019. The act provided a legislative assembly for Jammu and Kashmir and Ladakh will be administered by the President acting through a Lieutenant Governor.
- **Hence option (a) is the correct answer.**

Q 43.C

- The Cabinet Secretariat functions directly under the Prime Minister. The Cabinet Secretariat is responsible for the administration of the Government of India (Transaction of Business) Rules, 1961 and Government of India (Allocation of Business) Rules, 1961 facilitating smooth transaction of business in Ministries/ Departments.

- The **Secretariat assists in decision-making in Government by ensuring Inter-Ministerial coordination**, ironing out differences amongst Ministries/Departments, and evolving consensus through the instrumentality of the standing/Adhoc Committees of Secretaries.
- **Management of major crisis situations** in the country and coordinating activities of various ministries in such a situation is also one of the functions of the Cabinet Secretariat.
- The **Cabinet Secretariat provides secretarial assistance**, to Cabinet and Cabinet committees, this includes **monitoring the implementation of decisions** taken by the Cabinet and its Committees.
- Presently there are eight Cabinet Committees. All committees except Cabinet Committee on Accommodation and Cabinet Committee on Parliamentary Affairs are **headed by the Prime Minister. The Prime Minister constitutes Standing Committees of the Cabinet and sets out the specific functions assigned to them. He can add or reduce the number of committees.**
- **Thus among the given functions, option (c) is not a function of the Cabinet Secretariat.**

Q 44.B

- The Constitution of India under the **Sixth Schedule** contains special provisions for the administration of **tribal areas** in the four northeastern states of **Assam, Meghalaya, Tripura, and Mizoram**. The tribal areas in these States have been constituted as autonomous districts. The governor is empowered to organize and re-organize the autonomous districts.
- The **Fifth Schedule** of the Constitution deals with the administration and control of **scheduled areas** and scheduled tribes in any state except the four states of Assam, Meghalaya, Tripura, and Mizoram. As of 2019, ten states of India have scheduled areas. These are Andhra Pradesh, Telangana, **Jharkhand**, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha, and Rajasthan.
- **Hence option (b) is the correct answer.**

Q 45.A

- There are five sources of income for the urban local bodies. These are as follows:
 - **Tax Revenue:** The revenue from the local taxes includes property tax, entertainment tax, taxes on advertisements, professional tax, water tax, etc. Property tax is the most important tax revenue.
 - **Non-Tax Revenue:** This source includes rent on municipal properties, fees and fines, royalty, profits and dividends, interest, user charges, and miscellaneous receipts. The user charges (i.e., payment for public utilities) include water charges, sanitation charges, sewerage charges, and so on.
 - **Grants:** These include the various grants given to municipal bodies by the Central and State Governments for several development programs, infrastructure schemes, urban reform initiatives, and so on.
 - **Devolution:** This consists of the transfer of funds to the urban local bodies from the state government. **This devolution is made on the basis of the recommendations of the state finance commission. Hence statement 1 is correct.**
 - **Loans:** The urban local bodies raise loans from the state government as well as financial institutions to meet their capital expenditure. **They can borrow from financial institutions or other bodies only with the approval of the state government. Hence statement 2 is not correct.**

Q 46.D

- **The institutions of Speaker and Deputy Speaker originated in India in 1921 under the provisions of the Government of India Act of 1919** (Montague–Chelmsford Reforms). At that time, the Speaker and the Deputy Speaker were called the President and Deputy President respectively and the same nomenclature continued till 1947. **Hence option (b) is not correct.**
- **Before 1921**, the Governor-General of India used to preside over the meetings of the Central Legislative Council.
- In 1921, **Frederick Whyte and Sachidanand Sinha** were **appointed** by the Governor-General of India **as the first Speaker and the first Deputy Speaker** (respectively) of the central legislative assembly. In 1925, **Vithalbhai J. Patel** became the **first Indian and the first elected Speaker** of the central legislative assembly. **Hence options (a) and (c) are not correct.**
- The Government of India Act of 1935 changed the nomenclatures of President and Deputy President of the Central Legislative Assembly to the Speaker and Deputy Speaker respectively. However, the old nomenclature continued till 1947 as the federal part of the 1935 Act was not implemented.
- **G V Mavalankar and Ananthasayanam Ayyangar** had the distinction of being the **first Speaker and the first Deputy Speaker** (respectively) of the Lok Sabha. **Hence option (d) is the correct answer.**

- G V Mavalankar also held the post of Speaker in the Constituent Assembly (Legislative) as well as the provisional Parliament. He held the post of Speaker of Lok Sabha continuously for one decade from 1946 to 1956.

Q 47.C

- The **Fifth Schedule** of the Constitution deals with the administration of **scheduled areas** in any state except the four states of Assam, Meghalaya, Tripura and Mizoram.
- As of 2019, ten states of India have scheduled areas. These are Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha, and Rajasthan. The **provisions Fifth Schedule may be altered by Parliament by ordinary legislation**, without being required to go through the formalities relating to the amendment of the Constitution. **Hence statement 1 is correct.**
- The **President (& not the state legislature) is empowered to declare** an area to be a **scheduled area**. He/She can also increase or decrease its area, and alter its boundary lines. **Hence, statement 2 is not correct.**
- The **Constitution of India empowers the Governor** to direct that any **particular act of Parliament** or the state legislature does not apply to a scheduled area or **apply with specified modifications** and exceptions. **Hence, statement 3 is correct.**

Q 48.B

- The Finance Bill is introduced to give effect to the financial proposals of the Government of India for the following year. It is subjected to all the conditions applicable to a Money Bill.
- **Unlike the Appropriation Bill, the amendments (seeking to reject or reduce a tax) can be moved in the case of the finance bill. Hence statement 2 is correct.**
- **According to the Provisional Collection of Taxes Act of 1931, the Finance Bill must be enacted (i.e., passed by the Parliament and assented to by the president) within 75 days.** The Finance Act legalizes the income side of the budget and completes the process of the enactment of the budget. **Hence statement 1 is not correct.**

Q 49.C

- **On the recommendation of the Rules Committee of the Lok Sabha, 17 Departmentally-Related Standing Committees (DRSCs) were set up in the Parliament in 1993.** In 2004, seven more such committees were set up, thus increasing their number from 17 to 24.
- The main objective of the standing committees is to secure more accountability of the Executive (i.e., the Council of Ministers) to the Parliament, particularly financial accountability.
- The 24 standing committees cover under their jurisdiction all the ministries/departments of the Central Government.
- **Out of the 24 standing committees, 8 work under the Rajya Sabha and 16 under the Lok Sabha.**
- **Committees under Lok Sabha**
 - Committee on Agriculture
 - Committee on Information Technology
 - Committee on Defence
 - Committee on Energy
 - Committee on External Affairs
 - Committee on Finance
 - Committee on Food, Consumer Affairs, and Public Distribution
 - Committee on Labour
 - Committee on Petroleum and Natural gas
 - Committee on Railways
 - Committee on Urban Development
 - Committee on Water Resources
 - Committee on Chemicals and Fertilisers
 - Committee on Rural Development
 - Committee on Coal And Steel
 - Committee on Social Justice and Empowerment
- **Committees under Rajya Sabha**
 - Commerce
 - Education, Women, Children, Youth and Sports
 - Health and Family Welfare

- Home Affairs
- Industry
- Personnel, Public Grievances, Law and Justice
- Science and Technology, Environment, Forests and Climate Change
- Transport, Tourism and Culture
- **Hence option (c) is the correct answer.**

Q 50.A

- National Water Resources Council was constituted under the Chairmanship of the Hon'ble Prime Minister to look into this aspect. The National Water Resources Council (NWRC) adopted the National Water Policy in September 1987, It was reviewed and updated in 2002 and later in 2012.
- **Hence option (a) is the correct answer.**
- **National Water Board was constituted in September 1990 with Secretary, Ministry of Water Resources as Chairman and Chief Secretaries of all the States / UTs, Secretaries of concerned Union Ministries and Chairman, Central Water Commission, as Members, in order to review the progress of implementation of the stipulations of the National Water Policy for reporting to the NWRC and also initiate effective measures for systematic development of the country's water resources.**

Q 51.C

- **The Constitution of India provides for the following three kinds of funds for the Central government:**
 - Consolidated Fund of India (Article 266)
 - Public Account of India (Article 266)
 - Contingency Fund of India (Article 267)
- **Consolidated Fund of India:-** It is a fund to which all receipts are credited and all payments are debited. In other words, (a) all revenues received by the Government of India; (b) all loans raised by the Government by the issue of **treasury bills**, loans, or ways and means of advances; and (c) all money received by the government in repayment of loans forms the Consolidated Fund of India. All the legally authorized payments on behalf of the Government of India are made out of this fund. No money out of this fund can be appropriated (issued or drawn) except in accordance with parliamentary law. **Hence statement 1 is not correct.**
- **Public Account of India:-** All other public money (other than those which are credited to the Consolidated Fund of India) received by or on behalf of the Government of India shall be credited to the Public Account of India. This includes provident fund deposits, judicial deposits, savings bank deposits, departmental deposits, remittances, and so on. **This account is operated by executive action, that is, the payments from this account can be made without parliamentary appropriation. Such payments are mostly in the nature of banking transactions. Hence statement 3 is correct.**
- **Contingency Fund of India:-** The Constitution authorized the Parliament to establish a 'Contingency Fund of India', into which amounts determined by law are paid from time to time. Accordingly, the Parliament enacted the contingency fund of India Act in 1950. This fund is placed at the disposal of the president, and he can make advances out of it to meet unforeseen expenditures pending its authorization by the Parliament. **The fund is held by the finance secretary on behalf of the president.** Like the public account of India, it is also operated by executive action. **Hence statement 2 is not correct.**

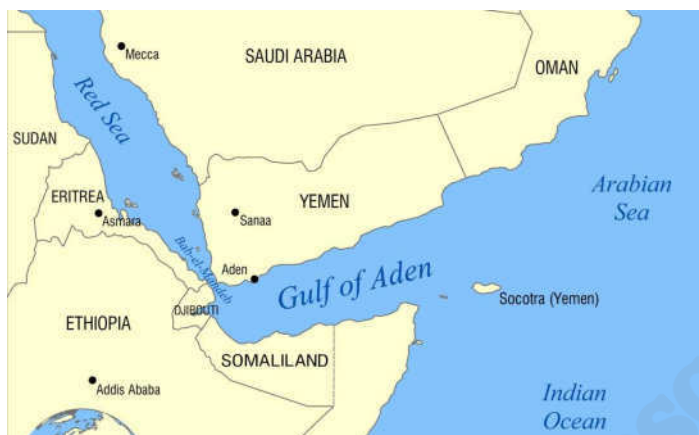
Q 52.B

- The Speaker is elected by the Lok Sabha from amongst its members (as soon as may be, after its first sitting).
- Whenever the office of the Speaker falls vacant, the Lok Sabha elects another member to fill the vacancy.
- The date of the election of the Speaker is fixed by the President.
- Usually, the Speaker remains in office during the life of the Lok Sabha. However, he has to vacate his office earlier in any of the following three cases:
 - if he ceases to be a member of the Lok Sabha;
 - if he resigns by **writing to the Deputy Speaker**; and
 - if he is removed by a resolution passed by a majority of all the **members of the Lok Sabha**. Such a resolution can be moved only after giving 14 days' advance notice. **Hence statements 2 and 3 are not correct.**
- When a resolution for the removal of the Speaker is under consideration of the House, he cannot preside at the sitting of the House, though he may be present. However, he can speak and take part in the proceedings of the House at such a time and vote in the first instance, though not in the case of an equality of votes.

- **Whenever the Lok Sabha is dissolved, the Speaker does not vacate his office and continues till the newly-elected Lok Sabha meets.**
- The Speaker is the head of the Lok Sabha and its representative. He is the guardian of powers and privileges of the members, the House as a whole, and its committees. He is the principal spokesman of the House, and his decision in all Parliamentary matters is final.
- The Speaker of the Lok Sabha derives his powers and duties from three sources, that is, the Constitution of India, the Rules of Procedure and Conduct of Business of Lok Sabha, and Parliamentary Conventions (residuary powers that are unwritten or unspecified in the Rules).
 - **He is the final interpreter of the provisions of the Constitution of India**, the Rules of Procedure and Conduct of Business of Lok Sabha, and the parliamentary precedents, within the House. **Hence statement 1 is correct.**

Q 53.A

- Recently, **severe drought conditions have wrecked havoc in the Horn of Africa** region and an estimated 13 million people are affected.
- **Horn of Africa** is a region of eastern Africa. It is the easternmost extension of African land and generally includes countries of **Djibouti, Eritrea, Sudan, Ethiopia, and Somalia**, whose cultures have been linked throughout their long history.
- As can be seen from the map **Ethiopia does not have direct access to Red Sea and it is a landlocked country.**
- **Hence, option (a) is the correct answer.**



Q 54.A

- Recently, the **Quarterly Bulletin of the Periodic Labour Force Survey (PLFS)** was launched. According to the survey
 - The unemployment rate for persons aged 15 years and above in urban areas dipped to 8.2 per cent in January-March 2022 from 9.3 per cent in the year-ago quarter.
 - It also showed that the unemployment rate among females (aged 15 years and above) in urban areas declined to 10.1 per cent in January-March, 2022 from 11.8 percent a year ago.
- National Statistical Office (NSO) launched the Periodic Labour Force Survey (PLFS) in April 2017. **Hence, statement 1 is correct.**
- The objective of PLFS is primarily two fold:
 - to estimate the key employment and unemployment indicators (viz. Worker Population Ratio, Labour Force Participation Rate, Unemployment Rate) in the short time interval of three months for the **urban areas only** in the 'Current Weekly Status' (CWS). **Hence, statement 2 is not correct.**
 - to estimate employment and unemployment indicators in both 'Usual Status' (ps+ss) and CWS in both rural and urban areas annually.
- These indicators, and 'Current Weekly Status' are defined as follows:
 - **Labour Force Participation Rate (LFPR):** LFPR is defined as the percentage of persons in labour force (i.e. working or seeking or available for work) in the population.
 - **Worker Population Ratio (WPR):** WPR is defined as the percentage of employed persons in the population.

- **Unemployment Rate (UR):** UR is defined as the percentage of persons unemployed among the persons in the labour force.
- **Current Weekly Status (CWS):** The activity status determined on the basis of a reference period of last 7 days preceding the date of survey is known as the current weekly status (CWS) of the person.

Q 55.A

- The Constitution empowers the Parliament to make laws on any matter enumerated in the State List under the following five extraordinary circumstances:
 - **When Rajya Sabha Passes a Resolution (Article 249):** If the Rajya Sabha declares that it is necessary in the national interest that Parliament should make laws with respect to goods and services tax or a matter in the State List, then the Parliament becomes competent to make laws on that matter. Such a resolution must be supported by two-thirds of the members present and voting. The resolution remains in force for one year. **Hence option 2 is correct.**
 - **During a National Emergency (Article 250):** The Parliament acquires the power to legislate with respect to goods and services tax or matters in the State List, while a proclamation of national emergency is in operation. The laws become inoperative on the expiration of six months after the emergency has ceased to operate.
 - **When States Make a Request (Article 252):** When the legislatures of two or more states pass resolutions requesting the Parliament to enact laws on a matter in the State List, then the Parliament can make laws for regulating that matter. A law so enacted applies only to those states which have passed the resolutions. However, any other state may adopt it afterward by passing a resolution to that effect in its legislature. Such a law can be amended or repealed only by the Parliament and not by the legislatures of the concerned states. A single state cannot request the parliament for the same. **Hence option 3 is not correct.**
 - **To Implement International Agreements (Article 253):** The Parliament can make laws on any matter in the State List for implementing international treaties, agreements, or conventions. This provision enables the Central government to fulfill its international obligations and commitments.
 - **During President's Rule (Article 357):** When the President's rule is imposed in a state, the Parliament becomes empowered to make laws with respect to any matter in the State List in relation to that state. A law made so by the Parliament continues to be operative even after the president's rule.
 - **The Constitution does not give any kind of discretionary power to the Parliament to make laws on a subject in a state list when a no-confidence motion has been passed and the state executive has resigned. Hence option 1 is not correct.**

Q 56.D

- The Constitution makes it clear that if any question arises whether a matter falls within the governor's discretion or not, the decision of the governor is final and the validity of anything done by him cannot be called in question on the ground that he ought or ought not to have acted in his discretion. The governor has constitutional discretion in the following cases:
 - **Reservation of a bill for the consideration of the President.**
 - **Recommendation for the imposition of the President's Rule in the state.**
 - While exercising his functions as the administrator of an adjoining union territory (in case of an additional charge)
 - **Determining the amount payable by the Government of Assam, Meghalaya, Tripura, and Mizoram to an autonomous Tribal District Council as royalty accruing from licenses for mineral exploration.**
 - Seeking information from the chief minister with regard to the administrative and legislative matters of the state. **Hence statements 1, 2, and 3 are correct.**
- In addition to the above constitutional discretion (i.e., the express discretion mentioned in the Constitution), the governor, like the President, also has situational discretion (i.e., the hidden discretion derived from the exigencies of a prevailing political situation) in the following cases:
 - Appointment of the chief minister when no party has a clear-cut majority in the state legislative assembly or when the chief minister in office dies suddenly and there is no obvious successor.
 - Dismissal of the council of ministers when it cannot prove the confidence of the state legislative assembly.
 - Dissolution of the state legislative assembly if the council of ministers has lost its majority.

Q 57.D

- Recently, the Department of Fertilizers sought comments from all stakeholders on the **draft Integrated Plant Nutrition Management Bill, 2022**. It is aimed at promoting the development and sustainable use of balanced fertilizers, including bio-fertilizers, nano-fertilizers, bio-stimulates, and organic fertilizers. It seeks to simplify the process for manufacturing production, distribution and price management of fertilizers across India.
- **The Nutrient Based Subsidy Scheme** is a Central Sector Scheme.
 - The scheme was launched in 2010 when the prices of **Phosphatic & Potassic (P&K) fertilizers** were decontrolled. 22 grades of P&K fertilizers namely DAP, MAP, TSP, MOP, Ammonium Sulphate, SSP and 16 grades of NPKS (Nitrogen (N), Phosphate (P), Potash (K), and Sulphur (S) Ammonium Phosphate fertilizers are covered under the scheme.
 - Under the **NBS Policy**, a fixed rate of subsidy (in Rs per Kg basis) is announced on nutrients namely **Nitrogen (N), Phosphate (P), Potash (K) and Sulphur (S)** by the government on annual basis. The **subsidy is released to fertilizer companies** as per approved rates so that they can make available fertilizers to farmers at an affordable price than it would have been otherwise. **Subsidy is not given directly to farmers** as currently, it is not feasible to disburse subsidy directly to farmers, which would require disbursement at the time of each purchase and the extent thereof would depend upon the quantity and type of product purchased. **Hence, statement 1 is not correct.**
- **Maximum Retail Price (MRP) of P&K fertilizers is decontrolled** and fertilizer manufacturers/marketers are allowed to fix the MRP at a reasonable price. The Centre provides a fixed rate of subsidy (in Rs. Per Kg basis) on each nutrient. But the price of urea fertilizer is still controlled. **Urea is the only fertilizer at present with pricing and distribution being controlled statutorily by the Government.** Thus, no one can sell urea above the MRP declared by the Govt. **Hence, statement 2 is not correct.**
- **Fertilizer (Control) Order, 1985** which is **administered by Department of Agriculture Cooperation**, Govt. of India has been issued under the **Essential Commodities Act, 1955**. The FCO lays down what substances qualify for use as fertilizers in the soil, product-wise specifications, methods for sampling and analysis of fertilizers, the procedure for obtaining license/registration as manufacturer/dealer in fertilizers and conditions to be fulfilled for trading thereof, etc. **Hence, statement 3 is not correct.**

Q 58.D

- The municipalities are established for the administration of towns and smaller cities. **Like the corporations, they are also set up in the states by the acts of the concerned state legislatures** and in the union territory by the acts of the Parliament of India. They are also known by various other names like the municipal council, municipal committee, municipal board, borough municipality, city municipality, and others. **Hence statement 1 is correct.**
- Like a municipal corporation, a municipality also has three authorities, namely, the council, the standing committees, and the chief executive officer. **The council is the deliberative and legislative wing of the municipality.** It consists of the councilors directly elected by the people.
- **The council is headed by a president/chair-man.** He is assisted by a vice-president/vice-chairman. He presides over the meetings of the council. Unlike the Mayor of a municipal corporation, he plays a significant role and is the pivot of the municipal administration. Apart from presiding over the meetings of the Council, he enjoys executive powers. **Hence statement 2 is correct.**
- **The chief executive officer/chief municipal officer is responsible for the day-to-day general administration of the municipality.** He is appointed by the state government. **Hence statement 3 is not correct.**

Q 59.D

- **Recently, the government has set up a National Land Monetisation Corporation** to fast-track the monetisation of land and non-core assets of public sector entities.
- National Land Monetization Corporation (NLMC) is a **wholly owned Government of India company** with an initial authorized share capital of Rs 5000 crore and paid-up share capital of Rs 150 crore. **Hence, statement 1 is correct.**
- NLMC will undertake **monetization of surplus land and building assets of Central Public Sector Enterprises (CPSEs) and other Government agencies.** For CPSEs undergoing strategic disinvestment or closure, monetization of these surplus land and non-core assets is important to unlock their value. NLMC will support and undertake monetization of these assets. **Hence, statement 2 is correct.**

- The Board of Directors of NLMC will comprise senior Central Government officers and eminent experts to enable professional operations and management of the company. The Chairman, non-Government Directors of the NLMC will be appointed through a merit-based selection process.
- Going forward, **Department of Public Enterprises, Ministry of Finance**, will set up the company and act as its administrative ministry. **Hence, statement 3 is correct.**

Q 60.B

- **Parliamentary Forum on Youth functions:**
 - To have focused deliberations on strategies to leverage human capital in the youth for accelerating development initiatives.
 - To build greater awareness amongst public leaders and at the grassroots level of the potential of youth for effecting socio-economic change.
 - To interact on a regular basis with youth representatives and leaders, in order to better appreciate their hopes, aspirations, concerns, and problems.
 - To consider ways for improving Parliament's outreach to different sections of youth, in order to reinforce their faith and commitment in democratic institutions and encourage their active participation therein.
 - To hold consultations with experts, national and international academicians, and government agencies concerned with redesigning of public policy in the matter of youth empowerment.
- **The Speaker also constituted four sub-forums of the Parliamentary Forum on Youth, viz.**
 - **Sub-Forum on Sports and Youth Development**
 - **Sub-Forum on Health**
 - Sub-Forum on Education
 - Sub-Forum on Employment
- **Each Sub-Forum has its own convener.**
- **Hence option (b) is the correct answer.**

Q 61.C

- **The impeachment charges can be initiated by either House of Parliament. Hence option (c) is the correct answer.**
- These charges should be signed by one-fourth of members of the House (that framed the charges), and a 14 days notice should be given to the President.
- After the impeachment resolution is passed by a majority of two-thirds of the total membership of that House, it is sent to the other House, which should investigate the charges.
- If the other House also sustains the charges and passes the impeachment resolution by a majority of two-thirds of the total membership, then the President stands removed from his office from the date on which the resolution is so passed.

Q 62.D

- **Public Accounts Committee:**
 - **This committee was set up first in 1921 under the provisions of the Government of India Act of 1919 and has since been in existence.**
 - **At present, it consists of 22 members (15 from the Lok Sabha and 7 from the Rajya Sabha).**
 - The members are elected by the Parliament every year from amongst its members according to the principle of proportional representation by means of the single transferable vote. Thus, all parties get due representation in it.
 - The term of office of the members is one year.
 - A minister cannot be elected as a member of the committee.
 - The chairman of the committee is appointed from amongst its members by the Speaker. Until 1966 – '67, the chairman of the committee belonged to the ruling party. However, since 1967 a convention has developed whereby the chairman of the committee is selected invariably from the Opposition.
 - The function of the committee is to examine the annual audit reports of the Comptroller and Auditor General of India (CAG), which are laid before the Parliament by the President.
 - The CAG submits three audit reports to the President, namely, an audit report on appropriation accounts, an audit report on financial accounts and an audit report on public undertakings.
- **Estimates Committee:**
 - The origin of this committee can be traced to the standing finance committee set up in 1921.
 - The first Estimates Committee in the post-independence era was constituted in 1950 on the recommendation of **John Mathai**, the then finance minister. **Hence statement 3 is not correct.**

- Originally, it had 25 members but in 1956 its membership was raised to 30. All the thirty members are from Lok Sabha only. **The Rajya Sabha has no representation in this committee.**
- **The Estimates committee is the largest committee of the Parliament. Hence statement 1 is not correct.**
- **Committee on Public Undertakings:**
 - This committee was created in 1964 on the recommendation of **the Krishna Menon Committee.**
 - Originally, it had 15 members (10 from the Lok Sabha and 5 from the Rajya Sabha). However, in 1974, its membership was raised to 22 (15 from the Lok Sabha and 7 from the Rajya Sabha). **Hence statement 2 is not correct.**
 - The members of this committee are elected by the Parliament every year from amongst its own members according to the principle of proportional representation by means of a single transferable vote. Thus, all parties get due representation in it.
 - The term of office of the members is one year.
 - A minister cannot be elected as a member of the committee.
 - The chairman of the committee is appointed by the Speaker from amongst its members who are drawn from the Lok Sabha only. Thus, the members of the committee who are from the Rajya Sabha cannot be appointed as the chairman.

Q 63.C

- **Money Bills: Article 110 of the Constitution deals with the definition of money bills.** It states that a bill is deemed to be a money bill if it contains 'only' provisions dealing with all or any of the following matters:
 - **The imposition, abolition, remission, alteration, or regulation of any tax; Hence statement 1 is correct.**
 - **The regulation of the borrowing of money by the Union government; Hence statement 2 is correct.**
 - **The custody of the Consolidated Fund of India or the contingency fund of India, the payment of money into or the withdrawal of money from any such fund;**
 - **The appropriation of money out of the Consolidated Fund of India; Hence statement 3 is correct.**
 - Declaration of any expenditure charged on the Consolidated Fund of India or increasing the amount of any such expenditure;
 - The receipt of money on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money, or the audit of the accounts of the Union or of a state; or
 - Any matter incidental to any of the matters specified above.
- **However, a bill is not to be deemed to be a money bill by reason only that it provides for:**
 - The imposition of fines or other pecuniary penalties, or
 - **The demand or payment of fees for licenses or fees for services rendered; Hence statement 4 is not correct. or**
 - The imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

Q 64.D

- **Recently, the lower Mekong river is entered its fourth year of drought** with poor rainfall, climate change, and hydropower dams producing the worst conditions along Southeast Asia's largest waterway in more than 60 years, threatening the livelihoods of up to 70 million people.
- Mekong River is the longest river in Southeast Asia, the 7th longest in Asia, and the 12th longest in the world. It has a length of about 4,350 kms. **Rising in southeastern Qinghai province, China, it flows through the eastern part of the Tibet Autonomous Region and Yunnan province, after which it forms part of the international border between Myanmar and Laos, as well as between Laos and Thailand. The river then flows through Laos, Cambodia, and Vietnam before draining into the South China Sea south of Ho Chi Minh City. Hence option (d) is the correct answer.**



- The Mekong River drains more than 313,000 square miles (810,000 square km) of land, stretching from the Plateau of Tibet to the South China Sea.
- The contrast between the physical conditions that prevail above and below the Mekong's descent from the Yunnan highlands divide it into two major parts. The upper Mekong flows 1,955 kms through a long, narrow valley comprising roughly one-fourth of the total area, cutting through the mountains and plateaus of southwestern China.
- The lower Mekong, below the point where it forms the border between Myanmar and Laos, is a stream 2,390 kms in length draining the Khorat Plateau of northeastern Thailand, the western slopes of the Annamese Cordillera in Laos and Vietnam, and most of Cambodia, before reaching the sea through the distributary channels of its delta in southern Vietnam.

Q 65.B

- Recently, Central Electricity Regulatory Commission issued draft Connectivity and General Network Access to the inter-State Transmission System Regulations, 2021.
- General Network Access (GNA) means **open and non-discriminatory access to the inter-state transmission system**. This is in keeping with the concept of "one nation, one grid". The system does away with unnecessary contracts between power producers and the bulk consumers for delivery of power. Any producer will have right to access to any consumer as far as the quantum contracted is met.
- Central Electricity Authority initiated the idea of GNA for:
 - Proper planning of transmission system and
 - Assured recovery of transmission charges from the applicant.
- It will ensure that a generator focusses only on producing power. Currently, a power generator has to work out how the supply will be done due to the point-to-point access concept which is restrictive. GNA will allow them to supply from any point.
- **Hence, option (b) is the correct answer.**

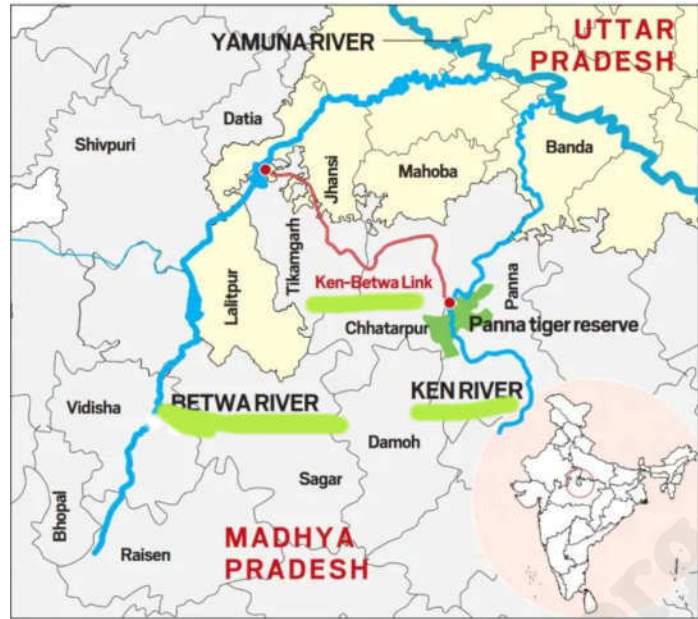
Q 66.D

- The provisions of the 73rd Constitutional Amendment Act, 1992 can be grouped into two categories—compulsory and voluntary. The compulsory (mandatory or obligatory) provisions of the act have to be included in the state laws creating the new Panchayati Raj System. The voluntary provisions, on the other hand, may be included at the discretion of the states. Thus the voluntary provisions of the act ensure the right of the states to take local factors like geographical, politico-administrative, and others, into consideration while adopting the new Panchayati Raj System.
- Compulsory provisions of Part IX of the constitution:
 - The organization of Gram Sabha in a village or group of villages.
 - Establishment of panchayats at the village, intermediate, and district levels.
 - Direct elections to all seats in panchayats at the village, intermediate, and district levels.
 - Indirect elections to the post of chairperson of panchayats at the intermediate and district levels.
 - 21 years is the minimum age for contesting elections to panchayats.
 - Reservation of seats (both members and chairpersons) for SCs and STs in panchayats at all three levels.
 - **Reservation of one-third of seats (both members and chairpersons) for women in panchayats at all three levels.**
 - **Fixing tenure of five years for panchayats at all levels and holding fresh elections within six months in the event of supersession of any panchayat.**
 - **Establishment of a State Election Commission for conducting elections to the panchayats.**
 - Constitution of a State Finance Commission after every five years to review the financial position of the panchayats.
- **Hence option (d) is the correct answer.**

Q 67.B

- **Ken-Betwa Link Project is the first project under the National Perspective Plan for the interlinking of rivers. It envisages transferring water from the Ken river to the Betwa river. The Ken-Betwa Link Canal will be 221 km long, including a 2-km long tunnel. Hence statement 1 is not correct.**
- The project has two phases, with mainly four components. Phase-I will involve one of the components — Daudhan Dam complex and its subsidiary units such as Low-Level Tunnel, High-Level Tunnel, Ken-Betwa Link Canal and powerhouses. Phase II will involve three components — Lower Orr Dam, Bina Complex Project and Kotha Barrage.
- It aims to address the perennial water scarcity in the parched regions of Bundelkhand region, spread across the states of MP and UP.

- **Concerns: Daudhandam, to be built on the Ken River will involve submergence of about 7.6% of the total Panna Tiger Reserve area.**
- The Centre has constituted a Ken-Betwa Link Project Authority and a national steering committee for interlinking the two rivers.
 - KBLPA has been constituted as a vertical of the National Water Development Agency.
 - It will comprise secretaries from ministries of environment, power and tribal affairs. ○ All central funds for the project will be routed through KBLPA.
- **The Ken River originates** near village Ahirgawan on the north-west slopes of **Kaimur Range (part of Vindhyan Range)** in Jabalpur district and travels a distance of 427 km, before merging with the Yamuna at Chilla village, near Fatehpur in Uttar Pradesh.
 - **Tributaries of Ken River:** The important tributaries of the Ken River are Sonar, Bearma, Kopra, Bewas, Urmil, Mirhasan, Kutni, Kail, Gurne, Patan, Siameri, Chandrawal, Banne, etc., among others. The longest tributary is Sonar which is 227 km in length
- **Betwa River rises in the Vindhya Range** just north of Hoshangabad, Madhya Pradesh. It flows generally northeast through Madhya Pradesh and Uttar Pradesh states and empties into the Yamuna River.
 - The Halali and Dhasan Rivers are the important tributaries of the Betwa River. The Halali is the largest tributary having a length of 180.32 km.
- **Thus both are tributaries of the Yamuna river. Hence statement 2 is not correct and statement 3 is correct.**



Q 68.A

- Article 123 of the Constitution empowers the President to promulgate ordinances during the recess of Parliament.
- The ambit of the ordinance-making power of the President is co-extensive with the legislative powers of the Parliament and subject to the same limitations as legislation of the Parliament. Thus **an ordinance cannot contravene fundamental rights any more than an act of Parliament.**
- An ordinance **can repeal an act of the Parliament on any subject in the lists given in the 7th schedule of the Constitution on which the Parliament has the right to make laws. Hence options 1 and 2 are correct.**
- Every ordinance issued by the President during the **recess of Parliament must be laid before both the Houses of Parliament when it reassembles.** If the ordinance is approved by both the Houses, it becomes an act. If Parliament takes no action at all, the **ordinance ceases to operate on the expiry of six weeks** from the reassembly of Parliament.
- If the Houses of Parliament are summoned to reassemble on different dates, the period of six weeks is calculated from the later of those dates.
- This **means that the maximum life of an ordinance can be six months and six weeks**, in case of non-approval by the Parliament (six months being the maximum gap between the two sessions of Parliament).
- Thus an **ordinance can exist at the most only for six months and six weeks from the date of reassembly of the Parliament if no action on it is taken by the Parliament. Hence option 3 is not correct.**

Q 69.D

- **UNEP is celebrating its 50th Anniversary this year.** It marks **fifty years since the 1972 United Nations Conference on the Human Environment**, widely seen as the first international meeting on the environment. **The 1972 Stockholm Conference** spurred the formation of environment ministries and agencies around the world, kickstarted a host of new global agreements to collectively protect the environment, and led to the **formation of the United Nations Environment Programme (UNEP).**

- One of the major results of the Stockholm conference was the creation of the United Nations Environment Programme (UNEP). The United Nations Conference on the Human Environment was held in Stockholm, Sweden, from June 5–16 in 1972. **Hence, statement 1 is correct.**
- **Headquartered in Nairobi, Kenya, UNEP** works through its divisions as well as regional, liaison and out-posted offices and a growing network of collaborating centres of excellence. **Hence, statement 2 is correct.**
- The United Nations Environment Assembly is the world's highest-level decision-making body on the environment. **Hosted by the UN Environment Programme**, the United Nations Environment Assembly brings together representatives of the 193 Member States of the UN, businesses, civil society and other stakeholders to agree on policies to address the world's most pressing environmental challenges. The **Environment Assembly meets biennially** to set priorities for global environmental policies and develop international environmental law. **Hence statement 3 is correct.**
- Recently, it has released its Annual Frontiers Report titles Noise, Blazes and Mismatches. The report titled 'Noise, Blazes and Mismatches' identifies and draw attention to emerging issues of environmental concern.

Q 70.C

- The constitution of India provides for mainly two types of grants-in-aid viz. statutory grants and discretionary grants.
- **Statutory Grants:**
 - **Article 275 empowers the Parliament to make statutory grants to the states which are in need of financial assistance and not to every state.** Also, different sums may be fixed for different states. These sums are charged on the Consolidated Fund of India every year. **Hence statement 1 is correct.**
 - Apart from this general provision, the Constitution also provides for specific grants for promoting the welfare of the scheduled tribes in a state or for raising the level of administration of the scheduled areas in a state including the State of Assam.
 - **The statutory grants under Article 275 (both general and specific) are given to the states on the recommendation of the Finance Commission. Hence statement 2 is correct.**
- **Discretionary Grants:**
 - Under article 282, both centers and states are able to make any grants for public purposes even if they are not within their legislative competence. Since such grants are discretionary, there are no obligations to make such grants.

Q 71.D

- The term 'federation' is derived from the Latin word foedus which means 'treaty' or 'agreement'. A federation can be formed in two ways, that is, by way of integration or by way of disintegration. In the first case, a number of militarily weak or economically backward states (independent) come together to form a big and strong union, for example, the US. In the second case, a big unitary state is converted into a federation by granting autonomy to the provinces to promote regional interests (for example, Canada).
- The Constitution of India provides for a federal system of government in the country. However, the term 'federation' has nowhere been used in the Constitution. Instead, Article 1 of the Constitution describes India as a 'Union of States'.
- According to Dr. B R Ambedkar, the phrase 'Union of States' has been preferred to 'Federation of States' to indicate two things:
 - **the Indian federation is not the result of an agreement among the states like the American federation; Hence, statement 2 is not correct.**
 - the states have no right to secede from the federation. The federation is a union because it is indestructible.
- **The Indian federal system is based on the 'Canadian model' and not on the 'American model' (British has Unitary System). Hence statement 1 is not correct.**
- The 'Canadian model' differs fundamentally from the 'American model' in so far as it establishes a very strong center. The Indian federation resembles the Canadian federation
 - in its formation (i.e., by way of disintegration);
 - in its preference to the term 'Union' (the Canadian federation is also called a 'Union'); and
 - in its centralizing tendency

Q 72.A

- **As per article 164 of the constitution**, The Chief Minister shall be appointed by the Governor and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister. However, **in the states of Chhattisgarh, Jharkhand, Madhya Pradesh, and Odisha**, there shall be a Minister in charge of tribal

welfare who may in addition be in charge of the welfare of the scheduled castes and backward classes or any other work. **The state of Bihar was excluded from this provision by the 94th Amendment Act of 2006. Hence options 1, 2, 4, and 6 are correct.**

Q 73.B

- The Financial Action Task Force (FATF) was established in July 1989 by a **Group of Seven (G-7) Summit in Paris**, initially to examine and develop measures to **combat money laundering**. In October 2001, the FATF expanded its mandate to incorporate efforts to **combat terrorist financing, in addition to money laundering**. In April 2012, it added efforts to counter the financing of proliferation of weapons of mass destruction. **Hence, statement 1 is not correct.**
- The FATF currently comprises 37 member jurisdictions and two regional organisations (European Commission and Gulf Cooperation Council), representing most major financial centres in all parts of the globe. **India has been a member of the FATF since 2010.** It is also a member of its regional partners, the Asia Pacific Group (APG) and the Eurasian Group (EAG). **Hence statement 2 is not correct.**
- The **FATF and the Organisation for Economic Co-operation and Development (OECD)** are separate organisations. Although the member countries overlap to a large degree, there are several countries which are members of the FATF and not the OECD, and vice versa. However, the **FATF Secretariat** (currently 40 people) is housed administratively at the **OECD. Hence statement 3 is correct.**
- FATF has 2 types of lists:
 - **Black List:** Countries known as Non-Cooperative Countries or Territories (NCCTs) are put in the blacklist. These countries support terror funding and money laundering activities. The FATF revises the blacklist regularly, adding or deleting entries.
 - **Grey List:** Countries that are considered safe haven for supporting terror funding and money laundering are put in the FATF grey list. This inclusion serves as a warning to the country that it may enter the blacklist.

Q 74.B

- The Constitution makes the following provisions with regard to the borrowing powers of the Centre and the states:
 - The Central government can borrow either within India or outside upon the security of the Consolidated Fund of India or can give guarantees, but both within the limits fixed by the Parliament. So far, no such law has been enacted by the Parliament.
 - Similarly, **a state government can borrow within India (and not abroad) upon the security of the Consolidated Fund of the State** or can give guarantees, but both within the limits fixed by the legislature of that state. **Hence statement 1 is not correct.**
 - The Central government can make loans to any state or give guarantees in respect of loans raised by any state. Any sums required for the purpose of making such loans are to be charged on the Consolidated Fund of India.
 - **A state cannot raise any loan without the consent of the Centre if there is still outstanding any part of a loan made to the state by the Centre or in respect of which a guarantee has been given by the Centre. Hence statement 2 is correct.**

Q 75.B

- Doubts and disputes relating to the **election of a President or Vice President are decided by the Supreme Court of India.** Article 71 of the Indian Constitution provides that the **Supreme Court of India shall have exclusive and final jurisdiction in disputes relating to the election of a President or Vice President.** The article further provides that if the election of a person as President or Vice President is declared void by the Supreme Court the acts done by him before the date of such declaration of the Supreme Court are not invalidated and continue to remain in force.
- **Hence option (b) is the correct answer.**

Q 76.C

- The **Government of India (Allocation of Business) Rules, 1961** are made by the **President of India** under **Article 77 of the Indian Constitution** for the allocation of business of the Government of India.
- The Ministries/Departments of the Government of India are created by the President on the advice of the Prime Minister under these Rules.
- Article 77 says that the President shall make rules for the more convenient transaction of the business of the Government of India, and for the allocation among Ministers of the said business.
- **Hence option (c) is the correct answer.**

Q 77.A

- The Deputy Chairman is **elected by the Rajya Sabha** itself from amongst its members. Whenever the office of the Deputy Chairman falls vacant, the Rajya Sabha elects another member to fill the vacancy. **Hence statement 1 is not correct.**
- The Deputy Chairman vacates his office in any of the following three cases:
 - if he ceases to be a member of the Rajya Sabha;
 - if he resigns by writing to the Chairman; and
 - if he is removed by a resolution passed by a majority of all the members of the Rajya Sabha. Such a resolution can be moved only after giving 14 days' advance notice.
- **The Deputy Chairman performs the duties of the Chairman's office when it is vacant or when the Vice-President acts as President** or discharges the functions of the President. He also acts as the Chairman when the Chairman is absent from the sitting of the House. In both cases, he has all the powers of the Chairman. **Hence statement 2 is correct.**
- **The Deputy Chairman is not subordinate to the Chairman. He is directly responsible to the Rajya Sabha. Hence statement 3 is not correct.**
- Like the Chairman, the Deputy Chairman, while presiding over the House, cannot vote in the first instance; he can only exercise a casting vote in the case of a tie.
- When a resolution for the removal of the Deputy Chairman is under consideration of the House, he cannot preside over a sitting of the House, though he may be present.
- When the Chairman presides over the House, the Deputy Chairman is like any other ordinary member of the House. He can speak in the House, participate in its proceedings and vote on any question before the House. Like the Chairman, the Deputy Chairman is also entitled to a regular salary and allowance. They are fixed by Parliament and are charged to the Consolidated Fund of India.
- The Deputy Chairman vacates his office in any of the following three cases:
 - if he ceases to be a member of the Rajya Sabha
 - if he resigns by writing to the Chairman
 - if he is removed by a resolution passed by a majority of all the members of the Rajya Sabha. Such a resolution can be moved only after giving 14 days' advance notice.

Q 78.A

- **Recently**, it was reported that **Baggage tags equipped with radio-frequency identification** will soon be available at Delhi's Indira Gandhi International Airport, marking a first of its kind in India.
- **Radio-frequency identification (RFID)** is a technology that uses radio waves to automatically identify various tagged objects. Transponder, receiver, and transmitter are the three components of an RFID system. The RFID reader continually sends radio waves of a specific frequency in RFID system. If the object to which the RFID tag is attached is within the range of the radio waves, it provides feedback to the RFID reader, which then identifies the object based on the feedback.
- **RFID tags** typically hold less than 2,000 KB of data, including a unique identifier/serial number. Tags can be **read-only or read-write**, where data can be added by the reader or existing data overwritten. **Hence statement 2 is not correct.**
- **Passive tags, semi-passive tags, and active tags** are the three types of RFID tags that are commercially available.
 - **Passive RFID tags do not have a battery** and are powered by the reader. They acquire their power from the readers' incoming radio waves.
 - **Semi-passive tags** comprise an internal circuit with a power source, but rely on the radio waves received from the reader to transmit the response.
 - **Batteries are being used to power active RFID tags.** It also utilises its own power supply to send the response to the reader.
- **QR stands for Quick Response.** A QR code is a type of barcode that can be read easily by a digital device and which stores information as a series of pixels in a square-shaped grid.
- There are primarily two types, static and dynamic.
 - A dynamic QR code can be edited and shared easily. Dynamic QR codes have a short URL embedded in the code, which can redirect the user to the destination website URL. The destination URL can be changed after the QR code has been generated, while the short URL embedded in the code remains the same.
 - Static QR codes, on the other hand, cannot be changed.
- **Main differences between QR Code and RFID:**

- **QR Codes run on the light** and sensor to read the information encoded on the card (**need line of sight**). while **RFID uses radio waves, which doesn't need line of sight**, to obtain the data. **Hence statement 1 is correct.**
- RFID scanners can process dozens of RFID cards within a second, while Barcode/QR code scanners are only able to process tags individually via each scan.
- RFID is much more secure but the RFID system is more complicated. Barcodes/QR code is straightforward to use as well as easily be replicated or counterfeited.

Q 79.C

- **Recent Context: The Privileges Committee of Lok Sabha has summoned Telangana Chief Secretary, Director General of police and five others based on a complaint by Karimnagar MP that he was manhandled by police while arresting him.**
- **Each House of Parliament and its Committees** collectively and members of each House individually enjoy certain rights, privileges and immunities without which they cannot perform their functions efficiently and effectively.
- The object of parliamentary privilege is to safeguard the freedom, authority, and dignity of Parliament. They are enjoyed by individual members, because the House cannot perform its functions without unimpeded use of the services of its members and by each House collectively for the protection of its members and the vindication of its own authority and dignity.
- **The functions of the Committee of Privileges are semi-judicial in nature.**
 - Semi-judicial means having a partly judicial character by possession of the right to hold hearings on and conduct investigations into disputed claims and alleged infractions of rules and regulations and to make decisions in the general manner of courts
 - **In this context, the privileges committee examines the cases of breach of privileges of the House and its members and recommends appropriate action based on enquiries and investigations. Hence statement 3 is correct.**
- This Committee in **Lok Sabha consists of 15 members nominated by the Speaker** whereas in Rajyasabha it consists of 10 members **nominated by Chairman. Hence statement 1 is correct and statement 2 is not correct.**
- Its function is to examine every question involving a breach of privilege of the House or of the members of any Committee thereof referred to it by the House or by the Speaker. It determines with reference to the facts of each case whether a breach of privilege is involved and makes suitable recommendations in its report.

Q 80.D

- There are several types of Urban Local bodies in India such as Municipal Corporation, Municipality, Notified Area Committee, Town Area Committee, Special Purpose Agency, Township, Port Trust, Cantonment Board, etc.
- A notified area committee is created for the administration of two types of areas–
 - a fast developing town due to industrialization, and
 - **a town that does not yet fulfill all the conditions necessary for the constitution of a municipality, but which otherwise is considered important by the state government.**
- Since it is established by notification in the government gazette, it is called a notified area committee. Though it functions within the framework of the State Municipal Act, only those provisions of the act apply to it which are notified in the government gazette by which it is created. It may also be entrusted to exercise powers under any other act.
- Its powers are almost equivalent to those of a municipality. **But unlike the municipality, it is an entirely nominated body, that is, all the members of a notified area committee including the chairman are nominated by the state government.** Thus, it is neither an elected body nor a statutory body.
- **Hence option (d) is the correct answer.**

Q 81.C

- **Recently, Purple or Lavender Revolution** was launched by the Ministry of Science & Technology through the Council of Scientific & Industrial Research's (CSIR) **Aroma Mission, which aimed at increasing lavender cultivation in Jammu and Kashmir.**
- Lavender cultivation is practised in almost all the **20 districts of J&K. Hence, statement 2 is not correct.**
- **However, the crop is native to Europe. Hence, statement 1 is correct.**

- Lavender water, which separates from lavender oil, is used to make incense sticks. Hydrosol, which is formed after distillation from the flowers, is used to make soaps and room fresheners.
- **Aroma Mission** is envisaged to bring transformative change in the aroma sector through desired interventions in the areas of agriculture, processing and product development for fuelling the growth of aroma industry and rural employment. **Project Aroma of CSIR-IIIM focuses** on catalyzing setting up of cooperatives for marketing, promotion of cultivation and processing of high value crops, development of superior varieties and their agro technologies, setting up of distillation units and processing facilities, skill and entrepreneurship development.
- Himrosa CK 10, Mint, lavender, Lemon grass Rosa grass, Ocimum, Rosemary, Wild Marigold, Salvia are some of the variety of aromatic plants under phase II of Aroma Mission.
 - **Lavender oil has antiviral and antibacterial properties** that help heal scrapes, bites and stings. It is also known to promote relaxation and sleep. **Hence statement 3 is correct.**
 - Lemongrass was used in traditional Chinese medicine to treat stomach pain, rheumatism, headaches and colds.
 - Rose essential oil is extracted from rose petals and can be used in aromatherapy as well as for massage by diluting with carrier oil.

Q 82.D

- Recently, the Ministry of Home Affairs has approved the implementation of the Inter-operable Criminal Justice System (ICJS) project Phase II during 2022-23 to 2025-26, as a Central Sector Scheme.
- ICJS is an initiative of the e-Committee of the Supreme Court to enable the seamless transfer of data and information among different pillars of the criminal justice system.
- ICJS is a national platform for enabling the integration of the main IT system used for the delivery of Criminal Justice in the country by five pillars namely:
 - **Police (Crime and Criminal Tracking and Network Systems)**
 - e-Forensics
 - e-Courts
 - e-Prosecution for Public Prosecutors
 - **e-Prisons**
 - **Hence option (d) is the correct answer.**
- National Crime Records Bureau will be responsible for the implementation of ICJS in association with the National Informatics Center, in collaboration with States and UTs.
- **Additional Information:**
 - **The 'Supreme Court Vidhik Anuvaad Software' short termed as 'SUVAS'** is a machine-assisted translation tool trained by Artificial Intelligence. This Tool is specially designed for Judicial Domain and at present, has the capacity and capability of translating English Judicial documents, Orders or Judgments into nine vernacular languages scripts and vice versa.
 - **The Supreme Court Portal for Assistance in Court's Efficiency (SUPACE)** is a tool that collects relevant facts and laws and makes them available to a judge. It is aimed at data mining, tracking the progress of cases, legal research, and other uses to ensure the timely delivery of justice by judges.

Q 83.A

- The President of India is the **Commander-in-chief of the Defence forces of India**. In that capacity, he appoints the chiefs of the Army, the Navy, and the Air Force. In this capacity, **he has the power to declare war or peace or the employment of the Defence forces. Hence statement 1 is correct.**
- However, Article 53 of the Constitution lays down that the **exercise of this power shall be regulated by the law**. Thus the **Parliament of India is competent to regulate the Military powers of the President**. Thus the President's powers as Commander-in-Chief cannot be construed as a power independent of legislative control. **Hence statement 2 is not correct.**

Q 84.A

- A Union Territory is administered by the President acting through an administrator appointed by him/her. The administrator acts as an agent of the President. Thus the Constitution of India has bestowed special responsibility on the President in relation to the administration of a Union Territory.
- The **President is given legal powers in relation to the administration** of some territories. Thus, President can make regulations for the peace, progress and good government of the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli, Daman and Diu and Ladakh. **A regulation made by the President has the same force and effect as an act of Parliament** and can also repeal or amend any act of Parliament in relation to these union territories. **Hence, option 1 is correct.**

- The **Constitution of India empowers the Parliament to make laws on any subject of the three lists** (including the State List) **for the union territories**. This power of Parliament also extends to Puducherry, Delhi and Jammu and Kashmir, which have their own local legislatures. **Hence, option 2 is correct.**
- The Union Territories of Puducherry (in 1963), National Capital Territory of Delhi (in 1992) and Jammu and Kashmir (in 2019) are provided with a legislative assembly and a council of ministers headed by a chief minister through the law of the Parliament. Accordingly, **these assemblies can make laws on the subjects mentioned in the state list and concurrent list. Hence, option 3 is correct.**
- The **Prime Minister is not empowered** to make laws for the Union Territories. **Hence, option 4 is not correct.**

Q 85.C

- In the states having a bicameral system, the state legislature consists of the Governor, the legislative council, and the legislative assembly.
- The legislative council (Vidhan Parishad) is the upper house (second chamber or house of elders), while the legislative assembly (Vidhan Sabha) is the lower house (first chamber or popular house).
- The Constitution provides for the abolition or creation of legislative councils in states.
 - Accordingly, the Parliament can abolish a legislative council (where it already exists) or create it (where it does not exist), if the legislative assembly of the **concerned state passes a resolution to that effect**. Such a specific resolution **must be passed by the state assembly by a special majority**, that is, a majority of the total membership of the assembly and a majority of not less than two-thirds of the members of the assembly present and voting. **Hence statement 1 is correct.**
 - **This Act of Parliament** is not to be deemed as an amendment of the Constitution for the purposes of Article 368 and is **passed like an ordinary piece of legislation (ie, by a simple majority)**. **Hence statement 2 is correct.**

Q 86.C

- As per the provisions of the Constitution, the Speaker of the last Lok Sabha vacates his office immediately before the first meeting of the newly-elected Lok Sabha. Therefore, the **President appoints a member** of the Lok Sabha as the Speaker Pro Tem. Usually, the senior-most member is selected for this. **Hence option (b) is not correct.**
- **The President himself administers the oath to the Speaker Pro Tem. Hence option (c) is the correct answer.**
- The Speaker Pro Tem has all the powers of the Speaker.
- He presides over the first sitting of the newly-elected Lok Sabha.
- His main duty is to administer the oath to the new members.
- He also enables the House to elect the new Speaker.
- **The date of the election of the Speaker is fixed by the President. Hence option (a) is not correct.**
- **He also administers the floor test. Hence option (d) is not correct.**
- When the new Speaker is elected by the House, the office of the Speaker Pro Tem ceases to exist. Hence, this office is a temporary office, existing for a few days

Q 87.C

- Native to North India, Kathak is one of six Indian classical dance forms. Kathak originated within Hindu temples as a storytelling device for portraying the epic tales from Hindu scriptures, Mahabharata and Ramayana. Poetry was combined with rhythmic movement to aid in worshipful storytelling.
- Nomadic Kathakars, or wandering storytellers, soon began carrying the dances throughout India. They added emotions and facial expressions to their performances, further developing the dance to include elements of mime and theatricality. In this way, Kathak transitioned from its secluded, devotional origins to a more accessible, multi-disciplined entertainment tradition.
- The Vaishnavite cult which swept North India in the 15th century and the resultant bhakti movement contributed to a whole new range of lyrics and musical forms. **The Radha-Krishna theme proved immensely popular along with the works of Mirabai, Surdas, Nandadas and Krishnadas. Hence, statement 1 is correct.**
- The three main sections of a Kathak dance are invocation and 'Nritta' and 'Nritya' mentioned in 'Natya Shastra' and followed by all major Indian classical dance forms.
- During the Mughal period, Kathak dance adapted a more erotic form without having many references to particular themes applied earlier that communicated religious or spiritual concepts.
 - Improvisations were made by the dancers predominantly to entertain the Muslim audience with sensuous and sexual performances which were different from the age-old dancing concept.

- Eventually, **Central Asian and Persian themes became a part of its repertoire.** These included replacements of sari with a costume that bared midriff, adding a transparent veil in the costume that typified the ones worn by medieval Harem dancers and whirling while performing as done in Sufi dance.
- By the time the colonial European officials arrived in India, Kathak had already become famed as a court entertainment and **was more of a fusion of ancient Indian classical dance form and Persian-Central Asian dance forms** with the dancers being referred to as 'nautch girls'. **Hence statement 2 is not correct.**
- During the medieval period, Kathak became an established part of court culture, performed under the patronage of India's Persian kings and Muslim Moghuls. This sealed Kathak's transition from colloquial entertainment to the classical art form.
- **One medieval ruler in particular invested himself greatly into the development of Kathak: Wajid Ali Shah of Lucknow, India.** A poet and dancer himself, Shah paid special attention to the emotional expressiveness of the dance. Out of his court came a stylization of Kathak that is today known as the Lucknow Gharana, or school. **Hence statement 3 is correct.**

Q 88.A

- Recently, census exercise was postponed indefinitely due to pandemic.
 - Census involves a detailed questionnaire eliciting particulars of every person, including age, sex, birthplace, mother tongue, religion etc.
 - National Population Register (NPR) collects basic demographic data and biometric particulars.
 - **NPR is a Register of all usual residents of the country regardless of whether they are citizens or non-citizens of India. Hence statement 1 is correct.**
 - A "usual resident of the country" is one who has been residing in a local area for at least last 6 months or intends to stay in a particular location for the next 6 months.
- **It is prepared at local (village/ward of town), subdistrict, district, state and national levels under provisions of the Citizenship Act 1955 and Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003. Hence statement 2 is not correct.**
- Data collected under NPR is shared with States and used by the Central government for various welfare schemes at the individual level.
- According to Citizenship Rules (2003), NPR is the first step towards the compilation of the National Register of Indian Citizens (NRIC) or NRC. NRC is a register containing the names of all genuine Indian citizens. At present, only Assam has such a register.

Q 89.B

- Recently the World Trade Organisation's (WTO) **12th Ministerial Conference** was held in Geneva from 12-17 June.
- WTO members make their decisions through various councils and committees, whose membership consists of all WTO members. The **Ministerial Conference** is the WTO's top decision-making body and **usually meets every two years.** All members of the WTO are involved in the MC and they can take decisions on all matters covered under any multilateral trade agreements. **Hence statement 1 is not correct.**
- Day-to-day work in between the ministerial conferences is handled by three bodies: **the General Council, the Dispute Settlement Body, the Trade Policy Review Body.**
- The General Council acts on behalf of the Ministerial Conference on all WTO affairs. It meets as the Dispute Settlement Body and the Trade Policy Review Body to oversee procedures for settling disputes between members and to analyse members' trade policies.
- The WTO continues GATT's tradition of making decisions not by voting but by consensus. Where consensus is not possible, the WTO agreement allows for voting — a vote being won with a majority of the votes cast and on the basis of "one country, one vote". The WTO Agreement envisages **four specific situations involving voting:**
 - An interpretation of any of the multilateral trade agreements can be adopted by a majority of three quarters of WTO members.
 - The Ministerial Conference can waive an obligation imposed on a particular member by a multilateral agreement, also through a three-quarters majority.
 - Decisions to amend provisions of the multilateral agreements can be adopted through approval either by all members or by a two-thirds majority depending on the nature of the provision concerned. But the amendments only take effect for those WTO members which accept them.
 - **A decision to admit a new member is taken by a two-thirds majority in the Ministerial Conference, or the General Council in between conferences. Hence statement 2 is correct.**

Q 90.C

- Article 360 empowers the president to proclaim a Financial Emergency if he is satisfied that a situation has arisen due to which the financial stability or credit of India or any part of its territory is threatened.
- **A proclamation declaring a financial emergency must be approved by both the Houses of Parliament** within two months from the date of its issue.
- Once approved by both the Houses of Parliament, the Financial Emergency continues indefinitely till it is revoked. This implies two things:
 - **there is no maximum period prescribed for its operation; and**
 - repeated parliamentary approval is not required for its continuation.
- **A resolution approving the proclamation of financial emergency can be passed by either House of Parliament only by a simple majority**, that is, a majority of the members of that house present and voting. **Hence option (c) is the correct answer.**
- The consequences of the proclamation of a Financial Emergency are as follows:
 - The executive authority of the Centre extends to the giving of
 - directions to any state to observe such canons of financial propriety as may be specified in the directions; and
 - such other directions to any state as the President may deem necessary and adequate for the purpose.
 - Thus, during the operation of a financial emergency, the Centre acquires full control over the states in financial matters.
- **No financial emergency has been declared so far though the financial situation of the nation during the late 1980s and early 1990s was grave.**

Q 91.A

- **Statement 1 is correct:** The Constitution lays down only two qualifications for the appointment of a person as a governor. These are:
 - He should be a citizen of India.
 - He should have completed the age of 35 years.
- **Statement 2 is not correct:** The President should be eligible for election to Lok Sabha and Vice President to Rajya Sabha, but no such conditions exist for the office of the Governor.
- **Statement 3 is not correct:** It is a ground for disqualification of legislators, unrelated to the office of the Governor.

Q 92.A

- **Statement 1 is not correct:** There is a governor for each state, but **the 7th Constitutional Amendment Act of 1956** facilitated the appointment of the same person as a governor for two or more states. The governor is the chief executive head of the state. But, like the President, he is a nominal executive head (titular or constitutional head). The governor also acts as an agent of the central government. Therefore, the office of the governor has a dual role.
- **Statement 2 is correct:** The Governor is appointed by the President by warrant under his hand and seal. **In a way, he is a nominee of the Central government.** But, **as held by the Supreme Court in 1979, the office of governor of a state is not an employment under the Central government.** It is an independent constitutional office and is not under the control of or subordinate to the Central government.
- The Governor is neither directly elected by the people nor indirectly elected by a specially constituted electoral college as is the case with the President. **The Draft Constitution provided for the direct election of the governor on the basis of universal adult suffrage.** The American model, where the Governor of a state is directly elected, was dropped and the Canadian model, where the Governor of a province (state) is appointed by the Governor-General (Centre), was accepted in the Constituent Assembly.

Q 93.D

- **The Constitution of India does not contain any separate provisions for the administration of acquired territories.** But, the constitutional provisions for the administration of union territories also apply to the acquired territories by virtue of the definition of a Union Territory given in **Article 366 (30) of the Constitution of India.**
- The article says that the 'Union territory means any Union territory specified in the First Schedule and includes any other territory comprised within the territory of India but not specified in that Schedule.
- **Hence option (d) is the correct answer.**

Q 94.B

- Recently, the Finance Secretary accused rating agencies of ‘double standards’ on Sovereign Credit Ratings when assessing emerging markets and developing economies.
- In India, **Credit rating agencies are regulated by Securities and Exchange Board of India (SEBI)** under SEBI (Credit Rating Agencies) Regulations, 1999 of the Securities and Exchange Board of India Act, 1992. In India, there are six credit rating agencies registered under Securities and Exchange Board of India (SEBI) namely, **CRISIL, ICRA, CARE, SMERA, Fitch India and Brickwork Ratings**. Hence, **statement 1 is not correct**.
- Credit ratings are forward-looking opinions on the relative ability of an entity to meet its financial commitments, i.e., the credit risk or relative creditworthiness of a borrower. Sovereign Credit Ratings (SCR) represent an objective and independent assessment of a country's or sovereign entity's ability to meet debt obligations.
- **Governments obtain SCR to facilitate:**
 - Borrowing Money from global capital markets by indicating its ability to pay back the money borrowed.
 - Attract Foreign Investment by indicating the country's worth as an investment destination
 - **Assessment on the country's economic and political environment to benchmark itself with other nations**. Hence, **statement 2 is correct**.
- Global ratings agencies S&P, Moody's and Fitch have placed the lowest investment grade rating on India, which is just above junk. In March, 2022 S&P has a **BBB- rating i.e., lowest investment grade (AAA being the highest rating) on India with a "stable" outlook**. However the Economic Survey 2020-21 said that the ratings do not reflect the fundamentals of the Indian economy. Hence, **statement 3 is not correct**.

Q 95.D

- **Committee of Privileges:** The functions of this committee are semi-judicial in nature. **It examines the cases of breach of privileges of the House and its members and recommends appropriate action**. The Lok Sabha committee has 15 members, while the Rajya Sabha committee has 10 members.
- **Rules Committee:** **This committee considers the matters of procedure and conduct of business in the House and recommends necessary amendments or additions to the rules of the House**. The Lok Sabha committee consists of 15 members including the Speaker as its ex-officio chairman. In the Rajya Sabha, it consists of 16 members including the Chairman as its ex-officio chairman.
- **House Committee:** **This committee deals with residential accommodation of members and other amenities like food, medical aid, etc., accorded to them in their houses and hostels in Delhi**. Both the Houses have their respective House Committees. In the Lok Sabha, it consists of 12 members.
- **Ethics Committee:** This committee was constituted in Rajya Sabha in 1997 and in Lok Sabha in 2000. It enforces the code of conduct of members of Parliament. **It examines the cases of misconduct and recommends appropriate action**. Thus, it is engaged in maintaining discipline and decorum in Parliament.
- **Hence option (d) is the correct answer.**

Q 96.C

- While a proclamation of Emergency is in force, the normal fabric of the Centre-state relations undergoes a basic change. This can be studied under three heads, namely, executive, legislative and financial.
- **Executive:** During a national emergency, the executive power of the Centre extends to directing any state regarding the manner in which its executive power is to be exercised. The Centre becomes entitled to give executive directions to a state on ‘any’ matter. **Thus, the state governments are brought under the complete control of the Centre, though they are not suspended**. Hence **statement 2 is not correct**.
- **Legislative:** During a national emergency, the Parliament becomes empowered to make laws on any subject mentioned in the State List. **Although the legislative power of a state legislature is not suspended, it becomes subject to the overriding power of the Parliament**. Hence **statement 1 is correct**.
 - **Notably, while a proclamation of national emergency is in operation, the President can issue ordinances on the state subjects also, if the Parliament is not in session**. Hence **statement 3 is correct**.
- **Financial:** While a proclamation of national emergency is in operation, the President can modify the constitutional distribution of revenues between the centre and the states. This means that the president can either reduce or cancel the transfer of finances from the Centre to the states

Q 97.B

- The functions of the Parliament are varied, complex, and voluminous. Therefore, it is assisted by a number of committees in the discharge of its duties.
- The Constitution of India makes a mention of these committees in different places, but without making any specific provisions regarding their composition, tenure, functions, etc. All these matters are dealt with by the rules of the two Houses.
- **Accordingly, a parliamentary committee means a committee that:**
 - Is appointed or elected by the House or nominated by the Speaker/Chairman. **Hence statement 1 is correct.**
 - Works under the direction of the Speaker/Chairman
 - Presents its report to the House or to the Speaker / Chairman. **Hence statement 2 is not correct.**
 - Has a secretariat provided by the Lok Sabha/Rajya Sabha
- The consultative committees, which also consist of members of Parliament, are not parliamentary committees as they do not fulfill the above four conditions. **Hence statement 3 is not correct.**

Q 98.B

- Recently, Kerala Nattukala Kshema Sabha has demanded that Karakattam (known as Kumbakkali in certain parts) be recognised as agricultural art form of Kerala.
- **Karakattam is an ancient folk dance of Tamil Nadu performed in praise of the rain goddess Mariamman. It's performed in different parts of Kerala as well.**
 - **It is performed at festivals, roadshows and primarily at Mariamman festivals.**
- It involves balancing a large number of pots of decreasing size on the head of the dancers while dancing and expressing theme of the dance.
 - Mariamman pooja is held in the month of Medam after Makarakkoythu (harvest season) in Kerala.
- Karakattam performances are characterised by a lot of swaying movements and joyous banter. It requires a lot of practice and dedication. Three tiers of flower arrangements of different colours sit on top of a container filled to the brim with either water, rice, or soil. All of this is balanced on the head of a Karakattam dancer while he or she dances.
- **Hence option (b) is the correct answer.**

Q 99.A

- Taking account of the phenomenal increase in transactions in virtual digital assets, the government has provided for a specific tax regime on taxation of virtual digital assets in Budget 2022-23.
- Under clause 47A of Section 2 of the Income Tax Act, the virtual digital assets mean:
 - any information or code or number or token (not being Indian currency or foreign currency), generated through cryptographic means or otherwise, by whatever name called, providing a digital representation of value exchanged with or without consideration, with the promise or representation of having inherent value, or functions as a store of value or a unit of account including its use in any financial transaction or investment, but not limited to investment scheme; and can be transferred, stored or traded electronically;
 - **a non-fungible token or any other token of similar nature, by whatever name called. Hence, statement 1 is correct.**
- From 1st April 2022 under Section 115BBH of the Income Tax Act, any income from the **transfer of any virtual digital asset shall be taxed at the rate of 30%**. If a virtual digital asset investor incurs losses during the transaction, it can't be set off against any other income. **Hence, statements 2 and 3 are not correct.**

Q 100.D

- **'Cut motion' is of three kinds:**
 - **Policy Cut Motion:** It represents the disapproval of the policy underlying the demand. It states that the amount of the demand is reduced to Re 1. The members can also advocate an alternative policy.
 - **Economy Cut Motion:** It represents the economy that can be affected by the proposed expenditure. It states that the amount of the demand is reduced by a specified amount (which may be either a lumpsum reduction in the demand or omission or reduction of an item in the demand).
 - **Token Cut Motion:** It ventilates a specific grievance that is within the sphere of responsibility of the Government of India. It states that the amount of demand is reduced by ₹100.
- **A cut motion, to be admissible, must satisfy the following conditions:**
 - It should relate to one demand only.
 - It should be clearly expressed and should not contain arguments or defamatory statements.
 - It should be confined to one specific matter.

- **It should not make suggestions for the amendment or repeal of existing laws.**
- It should not refer to a matter that is not primarily the concern of the Union government.
- It should not relate to the expenditure charged on the Consolidated Fund of India.
- It should not relate to a matter that is under adjudication by a court.
- It should not raise a question of privilege.
- It should not relate to a trivial matter.
- It should not reflect on the character or conduct of any person whose conduct can only be challenged on a substantive motion.
- It should not seek to raise a discussion on a matter pending before any statutory tribunal or statutory authority performing judicial or quasi-judicial functions or any commission or court of enquiry.
- **Hence option (d) is the correct answer.**

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